

LEARNER GUIDE

Unit Standard Title: EXPLAIN THE REQUIREMENTS FOR BECOMING A SECURITY SERVICE PROVIDER

Unit Standard No: 246694

Unit Standard Credits: 4

NQF Level: 3

In terms of the Copyright Act 1978:

No part of this manual may be reproduced or translated in any form or by any means, electronic or mechanical including photocopying, recording or by an information storage and retrieval system without the express permission from TDA.

COPYRIGHT: TRAINING DYNAMICS AFRICA

First edition 2008

Publications disclaimer

Neither the authors nor the SETA can accept any responsibility for any legal or any other consequences, which may arise directly or indirectly as a result of the use or adaptation of or reliance upon any of the content of this material.

This material has been compiled based on the **UNIT STANDARD 246694 EXPLAIN THE REQUIREMENTS FOR BECOMING A SECURITY SERVICE PROVIDER.**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by:

Training Dynamics Africa

PROGRAM GUIDE	5-10
1. Introduction	5
2. Purpose of this learning program	5
3. Standards and qualifications	5
4. Assessments	6
5. Range statements	6
6. The learning guide	6
7. Learning assumed to be in place	7
8. Training	9
9. Preparation of summative assessment	10
10. Roles and responsibilities	10
Study unit 1: The Role of PSIRA	11-16
1. Objects of PSIRA	13
2. Functions of PSIRA	13
Study unit 2: Registration as a Security Service Provider	17-63
1. Obligation to register and exemptions	19
2. Application for registration	19
3. Clearance certificate: ex-member of any official military, security, police or intelligence force or service	46
4. Infrastructure and capacity necessary to render a security service	51
5. Register of a security service provider and related issued	52
6. Renewal of registration	53
7. Requirements for registration	53
8. Register of security service providers	54
9. Registration and identification certificates	54
10. Suspension, withdrawal and lapsing of registration	54
11. Change of name and status of security service provider	56
12. Change with regard to information submitted to PSIRA	57
13. Certificates of registration, identification and appointment	57
14. Keeping of records and documents	58
15. Uniforms, insignia, badges and firearms	61
Study unit 3: Monitoring and Investigations	65-72
1. Appointment of inspectors	67
2. Code of conduct for inspectors	67
3. Inspection of security service providers	68

4.	Powers of inspectors relating to security service providers	68
5.	Offences and penalties	70

Study unit 4: PSIRA Statutory code of conduct	73-101
--	---------------

1.	Purpose, application and interpretation of the code	75
2.	Application of Code	75
3.	General obligations towards PSIRA	76
4.	General obligations towards the Security Services and organs of State	77
5.	General obligations towards the public and the private security industry	77
6.	General obligations towards clients, and issues related thereto	80
7.	Provisions regarding certain categories and classes of security service providers and different types of security services	84
8.	Obligations on employers of in-house security officers	93
9.	Provisions regarding improper conduct, the enforcement of the code and other matters relating thereto	94
10.	Appeal against decisions	99

Glossary of Terms	103-104
--------------------------	----------------

Bibliography	105
---------------------	------------

Unit standard	107-110
----------------------	----------------

1. Introduction

This learning program is part of a complete qualification. For more details concerning the complete qualification please contact your service provider or alternatively the office of the SASSETA

2. Purpose of this learning program

This unit standard will lead learners towards achieving knowledge, skills and attributes that would enable them to apply the provisions of the legislation that regulates the occupation of security service providers.

A person credited with this unit standard will be able to:

- Explain the role of Private Security Industry Regulatory Authority (PSIRA) in terms of regulating the security industry.
- Explain the compulsory registration provisions for a security service provider.
- Explain the requirements that must be complied with as a security service provider.
- Explain the obligations and requirements that must be met in terms of the Code of Conduct for Security Service Providers.

2.1 Target group

This program is compiled for the following **target group**:

- Security members
- South African Defense Force members
- South African Police Force members
- Correctional Services
- Individuals who wishes to complete the NQF level 3 National Certificate in security practices.

3. Standards and qualifications

It is important that you as the learner understand and realize that this training program is not presented in isolation, but that it was developed based upon nationally recognized standards known as **unit standards**.

REMEMBER.....

Unit standards are the “building blocks” of qualifications. All qualifications are plotted on the National Qualifications Framework (NQF).

Unit standards comprises of outcomes. An outcome is a statement that describes the required competency that must be demonstrated by the learner on successful completion of a training intervention.

4. Assessments

In order to assess whether a learner can actually demonstrate the desired outcomes, assessment criteria are included in the unit standard. Each outcome has its own set of assessment criteria.

REMEMBER.....

The assessment criteria describe the evidence that is needed that will show that the learner has demonstrated the outcome correctly.

Kindly refer to the unit standard attached hereto for the assessment criteria.

It is of utmost importance that the learner fully understands the assessment criteria as listed in the unit standard, as it is the only way in which the learner will know what he will be assessed against.

The **final or summative assessment** is the most important aspect of this training program. It is during this process that the learner will be declared competent or not yet competent.

The learner will know exactly how he will be assessed, and when and where he will be assessed. All of these details must be obtained from the training provider where the learner enrolled for his program.

5. Range statements

REMEMBER.....

Also included in the unit standard are the range statements in support of the assessment criteria.

The range statements indicate detailed requirements of the assessment criteria.

6. The learning guide

The learner guide is included in this material under various learning units. The learner guide has been designed in such a manner that the learner is guided in a logical way through the learning material and requirements of the unit standard.

On completion of this skill program, the learner will be assessed against the assessment criteria as stipulated in the unit standard.

Each of the modules consists of learner outcomes to be achieved during training and development interventions, work related experience or at your own time. The learner outcomes will enable you to achieve the required level of confidence and competence in order to undergo the summative (final evaluations) assessment.

The learner needs to assess his own knowledge and skill throughout the training process by completing the learner workbook. With the completion of the workbook you start collecting evidence to proof your competence. The learner workbook will be assessed (FORMATIVE ASSESSMENT)

TAKE NOTE

The learner guide will remain the property of the learner once the LEARNING PROGRAM has been completed.

TAKE NOTE

- The best results will be obtained if you start with Study Unit 1 in the Learner Guide, and work your way through it, study unit by study unit.
- All learning outcomes are vital and must be studied (and exercised for all practical requirements) thoroughly to ensure that enough evidence for all specific outcomes is generated.

7. Learning assumed to be in place

It is assumed that a learner which registers for this program have completed a program in communication at NQF Level 3 or equivalent.

It is imperative to understand that this program are only one of the building blocks to complete Skills program 1. The complete list of unit standards for Skills program appears on the next page.

7.1 Security program matrix

SKILLS PROGRAM 1: SASSETA E			
246694	Explain the requirements for becoming a security service provider	Level 3	4 Credits
244177	Conduct a security patrol in area of responsibility	Level 3	7 Credits
244184	Apply legal aspects in a security environment	Level 3	8 Credits
244176	Use security equipment	Level 2	2 Credits
244179	Handle complaints and problems	Level 3	6 Credits
244181	Perform hand over and take over responsibilities	Level 3	2 Credits
244182	Give evidence in court	Level 3	4 Credits
12484	Perform basic fire fighting	Level 2	4 Credits
116534	Carry out basic first aid treatment in the workplace	Level 3	2 Credits

Patrol Security officer/Grade E

SKILLS PROGRAM 2: SASSETA D			
244189	Conduct access and egress control	Level 4	7 Credits
242825	Conduct evacuations and emergency drills	Level 4	4 Credits
11505	Identify, handle and defuse security related conflict	Level 4	12 Credits
117705	Demonstrate knowledge of the Firearms Control Act 2000 (Act No. 60 of 2000)	Level 3	3 Credits
113924	Apply basic business ethics in a work environment	Level 2	2 Credits
119465	Write/present/sign texts for a range of communicative contexts	Level 3	5 Credits
114979	Operate a computer workstation in a business environment	Level 3	2 Credits

Access control officer/Grade D

SKILLS PROGRAM 3: SASSETA C			
113909	Coach a team member in order to enhance individual performance in work environment	Level 3	5 Credits
13912	Apply knowledge of self and team in order to develop a plan to enhance team performance	Level 3	5 Credits
244578	Describe how to manage reactions arising from a traumatic event	Level 3	2 Credits
113852	Apply occupational health, safety and environmental principles	Level 3	10 Credits
13936	Outline the legal environment of a selected industry	Level 3	2 Credits
119472	Accommodate audience and context needs in oral/signed communication	Level 3	5 Credits
11983	Compile and administer a case docket for investigation purposes	Level 5	6 Credits

Asset & reaction officer/Grade C

8. Preparation of summative assessment

After you have worked through the **LEARNER GUIDE** and you are satisfied that all theoretical and practical requirements/ evidence, as stipulated by the UNIT STANDARD, can be met, you need to make your own necessary arrangements with the assessor and/ or facilitator. The training establishment will then arrange a suitable date for you to attend your pre-assessment meeting and then arrange for a suitable date to complete the final assessment.

8.1 RPL assessment



The assessment of RPL learners will be conducted in the same way as for those of new learners. The assessment pack is exactly the same and will therefore be used for new learners as well as RPL Learners. It must however be noted that learners who are applying for RPL must provide proof of previous learning and subject related experience prior to the assessment.

This proof or evidence can be in the format of certified copies (certificates) of previous learning programs that have been attended.

All the evidence will be assessed and authenticated before a learner will be allowed to enroll for an RPL program.

9. Roles and responsibilities

9.1 Facilitator/instructor

- Prepare to facilitate.
- Transfer of knowledge and skills

9.2 The role of the assessor

- Plan for the assessment
- Prepare the learner for the assessment

9.3 The role of the Learner

- Prepare for assessment.
- Accept the responsibility of learning.
- Accept the responsibility to produce/deliver evidence.

STUDY UNIT 1

THE ROLE OF PSIRA

LEARNING OUTCOMES

On completion of this study unit the student will....



- Explain the objectives of PSIRA in terms of Section 3 of the Act.
- Explain the function of PSIRA in terms of Section 4 of the Act.

1. Objects of PSIRA

Section 3: The primary objects of PSIRA are to regulate the private security industry and to exercise effective control over the practice of the occupation of security service provider in the public and national interest and the interest of the private security industry itself, and for that purpose, subject to this Act, to:

- (a) promote a legitimate private security industry which acts in terms of the principles contained in the Constitution and other applicable law;
- (b) ensure that all security service providers act in the public and national interest in the rendering of security services;
- (c) promote a private security industry which is characterized by professionalism, transparency, accountability, equity and accessibility;
- (d) promote stability of the private security industry;
- (e) promote and encourage trustworthiness of security service providers;
- (f) determine and enforce minimum standards of occupational conduct in respect of security service providers;
- (g) encourage and promote efficiency in and responsibility with regard to the rendering of security services;
- (h) promote, maintain and protect the status and interests of the occupation of security service provider;
- (i) ensure that the process of registration of security service providers is transparent, fair, objective and concluded timeously;
- (j) promote high standards in the training of security service providers and prospective security service providers;
- (k) encourage ownership and control of security businesses by persons historically disadvantaged through unfair discrimination;
- (l) encourage equal opportunity employment practices in the private security industry;
- (m) promote the protection and enforcement of the rights of security officers and other employees in the private security industry;
- (n) ensure that compliance with existing legislation by security service providers is being promoted and controlled through a process of active monitoring and investigation of the affairs of security service providers;
- (o) protect the interests of the users of security services;
- (p) promote the development of security services which are responsive to the needs of users of such services and of the community;
- (q) promote the empowerment and advancement of persons who were historically disadvantaged through unfair discrimination in the private security industry.

2. Functions of PSIRA

Section 4: PSIRA must take steps to achieve its objects with the means at its disposal and may, subject to this Act and any other law, for the purpose of achieving its objects:

- (a) exercise such powers and perform such duties as may be given or assigned to PSIRA in terms of this Act or any other law;
- (b) enquire into and report to the Minister on any matter concerning the objects of PSIRA;

- (c) advise the Minister on any matter deemed by PSIRA to be necessary or expedient to be considered by the Minister in connection with the provisions of this Act or the Levies Act, or the application thereof, and on any other matter relating to security services which has been referred by the Minister to PSIRA for the advice and recommendations of PSIRA;
- (d) conduct an ongoing study and investigation of the rendering of security services and practices of security service providers in order to identify shortcomings in this Act and the Levies Act, or any policy or rule made in terms thereof, and to deal with any evasion, abuse or violation of the procedures or principles contained in this Act or the Levies Act, or any policy or rule made in terms thereof;
- (e) institute legal proceedings and defend or oppose any legal proceedings against PSIRA;
- (f) receive and consider applications for registration and renewal of registration as security service provider and grant or renew registration to applicants who comply with the requirements for such registration or renewal of registration in terms of this Act;
- (g) suspend or withdraw the registration status of a security service provider in terms of this Act;
- (h) take such steps as may be necessary to develop and maintain standards and regulate practices in connection with the occupation of security service provider, and persons pursuing or intending to pursue such occupation;
- (i) gather information relevant to the occupation of security service provider in connection with persons who are security service providers or who are applying for registration as such;
- (j) take steps to protect and assist security officers and other employees against or in regard to acts, practices and consequences of exploitation or abuse;
- (k) take such steps as may be expedient or necessary in connection with the training of security service providers and prospective security service providers to ensure a high quality of training and in particular with regard to:
 - (i) the accreditation and withdrawal of the accreditation of persons and institutions providing security training;
 - (ii) the monitoring and auditing of the quality of training functions performed by accredited persons;
 - (iii) the participation in the activities of other bodies or persons entitled by law to set standards in respect of training of security service providers or bodies entitled to formulate, implement or monitor skills development plans for the private security industry;
 - (iv) the appointment of persons to monitor and assess achievements or outcomes in respect of standards applicable to training;
 - (v) the determination and accreditation of qualifications required by security service providers to perform particular types of security services; and
 - (vi) the taking of reasonable steps to verify the authenticity of training certificates presented by persons for the purposes of this Act;

- (l) cause its work to be performed by persons employed or appointed by it in terms of this Act;
- (m) develop and maintain a computerized data base with information required for the proper performance of its functions;
- (n) establish and manage branch offices;
- (o) provide or disseminate information promoting and encouraging compliance with this Act, the Levies Act and the code of conduct, by security service providers;
- (p) provide information to the users, prospective users or representatives of users of security services regarding the compliance of security service providers with the provisions of this Act and the Levies Act;
- (q) establish a guarantee fund for the private security industry which is managed in the prescribed manner;
- (r) in the prescribed manner establish a complaints office to receive, process, refer or deal with complaints regarding the quality of service rendered by security service providers;
- (s) furnish information required by any department or any organ of State for the purposes of its official functions;
- (t) receive, expend and generally administer funds;
- (u) open accounts with any banking or other financial institution approved by the Treasury;
- (v) invest money with financial institutions registered in terms of any law;
- (w) determine, charge and collect fees as provided for in this Act or in respect of any service rendered by PSIRA or any object made available by PSIRA;
- (x) acquire or hire movable or immovable property, or hypothecate, let, sell or otherwise dispose of movable or immovable property of PSIRA;
- (y) accept donations with the approval of the Minister;
- (z) raise finance from other sources in the course of normal business;
- (aa) manage and safeguard its assets;
- (bb) determine minimum internal control systems for security businesses, including but not limited to, accounting and reporting procedures and any other procedures or systems;
- (cc) become a member of an association or organization which seeks to promote any matter in which PSIRA has an interest;
- (dd) establish relations with or enter into co-operation agreements with bodies or offices regulating the private security industry in other countries, or bodies representing such regulators;
- (ee) conduct, or cause to be conducted, hearings, investigations and inquiries with regard to any matter falling within the scope of its functions;
- (ff) enter into contracts including insurance agreements;
- (gg) enter into agreements with or obtain the assistance of any department or organ of State to conduct or assist it in conducting any investigation or performing any other function in terms of this Act or the Levies Act;
- (hh) cooperate with any person or body in the performance of an act which PSIRA by law is permitted to perform; and
- (ii) generally perform any act that contributes to the attainment of its objects.

STUDY UNIT 2

REGISTRATION AS A SECURITY SERVICE PROVIDER

LEARNING OUTCOMES

On completion of this study unit the student will....



- Explain the requirements of the PSIRA Act (Private Security Industry Regulation Act) 56 of 2001 with regard to registration of a security service provider.
- Know the compulsory registration requirement for security officers in terms of the PSIRA Act 56 of 2001.
- Know the compulsory registration requirement for security service providers in terms of the PSIRA Act 56 of 2001.
- Explain the infrastructure and capacity needed to be registered as a security service provider.
- Explain the requirements for renewal of annual registration.
- Explain the factors involved in the event of suspension, withdrawal and lapsing of registration.
- Explain the requirements for changing company name, and status in terms of the Act.
- Explain the requirements for keeping records and documents in terms of the Act.
- Explain the requirements that must be met with regard to the compulsory wearing of identity cards by security officers on duty, according to section 25 and regulation 9 (1), (2), (4), (5) and (6).

1. Obligation to register and exemptions**Section 20. (1)**

- (a) No person, except a Security Service contemplated in section 199 of the Constitution (Act No. 108 of 1996), may in any manner render a security service for remuneration, reward, a fee or benefit, unless such a person is registered as a security service provider in terms of this Act.
- (b) A Security Service contemplated in section 199 of the Constitution may use persons employed by them and who are not registered as security service providers to render a security service.

Section 20 (2) A security business may only be registered as a security service provider:

- (a) if all the persons performing executive or managing functions in respect of such security business are registered as security service providers; and
- (b) in the case of a security business which is a company, close corporation, partnership, business trust or foundation, if every director of the company, every member of the close corporation, every partner of the partnership, every trustee of the business trust, and every administrator of the foundation, as the case may be, is registered as a security service provider.

Section 20 (3) Any contract, whether concluded before or after the commencement of this Act, which is inconsistent with a provision contained in subsections (1), (2) or section 44(6), is invalid to the extent to which it is so inconsistent.

Section 20 (4) The invalidity of a contract as contemplated in subsection (3), does not affect the applicability of any provision of this Act or the Levies Act.

Section 20 (5) The Minister may, after consultation with PSIRA, by notice in the Gazette exempt any security service provider or security service provider belonging to a category or class specified in the notice, either generally or subject to such conditions as may be specified in the notice, from the operation of any provision of this Act.

2. Application for registration

Section 21. (1) An application for registration as a security service provider must be made to PSIRA in the prescribed manner and must be accompanied by:

- (a) a clear and complete set of fingerprints taken in the prescribed manner:
 - (i) of the applicant, if the applicant is a natural person;
 - (ii) if the applicant is a security business, of every natural person performing executive or managing functions in respect of such security business;
 - (iii) of each director, if the applicant is a company;
 - (iv) of each member, if the applicant is a close corporation;
 - (v) of each partner, if the applicant is a partnership;
 - (vi) of each trustee, if the applicant is a business trust; and
 - (vii) of each administrator or person in control, if the applicant is a foundation.

- (a) the application fee as determined by PSIRA; and
- (b) any other document or certificate required in terms of this Act or by PSIRA to be submitted with an application for registration.

Section 21 (2) Any person applying in terms of subsection (1) for registration as a security service provider, must furnish such additional particulars in connection with the application as PSIRA may determine.

Section 21(3) If PSIRA is of the opinion that the provisions of this Act have been complied with in respect of an application referred to in subsection (1), it may grant such application and register the applicant as a security service provider.

Regulation 2. (1) An application for registration as a security service provider in terms of section 21 of the Act must be submitted to the director on the applicable form as determined by PSIRA for this purpose and which may be obtained from PSIRA.

Regulation 2 (2) The duly completed and signed application form submitted to the director in the case of an application for registration by a natural person, not applying for registration as a security business, must be accompanied by the following:

- (a) payment of the following amounts:
 - (i) the relevant application fee;
 - (ii) the amount payable to the Service in respect of the preliminary screening of the applicant by the Service on the basis of the name and identity number of the applicant, as contemplated in paragraph (f), if the applicant requests this procedure and wishes PSIRA to submit the request to the Service; and
 - (iii) before the implementation of the Levies Act, the prescribed amount for a period of at least 1 month, as contemplated in regulation 9(4), published in Government Gazette No. 22770 dated 1 November 2001, prescribed in terms of section 18 of the repealed legislation; or (bb) after the implementation of the Levies Act, the applicable levies for a period of at least 1 month as imposed in terms of the Levies Act;
- (b) an authenticated copy of the first page of the official identity document of the applicant or an authenticated copy of any other official document demonstrating the applicant's identity and South African citizenship;
- (c) proof to the satisfaction of PSIRA that an applicant who is not a South African citizen has permanent resident status in South Africa;
- (d) an authenticated, recent, clear passport size photograph of the applicant;
- (e) a clear and complete set of fingerprints of the applicant, taken on the form used by the Service for this purpose, by or in the presence of a member of the Service or by or in the presence of an employee of PSIRA designated in writing by the director to perform this function;
- (f) a properly completed request for preliminary screening by the Service on the basis of the applicant's name and identity number, if the applicant requests such screening, to confirm his or her criminal record status and PSIRA is willing to consider the application in terms of sub-regulation (5);
- (g) original police or other official clearance certificates on the criminal record status of the applicant, where applicable, as contemplated in sub-regulation (6);

- (h) original clearance certificate materially satisfying the requirements in regulation 4 of these regulations if the applicant is a person contemplated in section 23(1)(f) of the Act;
- (i) an original certificate or other proof, acceptable to PSIRA, that the applicant has complied with the applicable training requirements contemplated in regulation 3 of these regulations; and
- (j) a valid undertaking regarding suretyship or guarantee contemplated in sub-regulation (4)(c) if the applicant is a person contemplated in section 21(1)(a)(iii), (iv), (v), (vi) or (vii) of the Act.

Regulation 2 (3) The duly completed and signed application form submitted to the director in the case of an application for registration by a security business, must be accompanied by the following:

- (a) payment of the following amounts:
 - (i) the relevant application fee; and
 - (ii) (aa) before the implementation of the Levies Act, the prescribed amount for a period of at least 2 months, as contemplated in regulation 9(3) item X, published in Government Gazette No. 22770 dated 1 November 2001, prescribed in terms of section 18 of the repealed legislation; or (bb) after the implementation of the Levies Act, the applicable levies for a period of at least 2 months as imposed in terms of the Levies Act;
- (b) duly completed applications for registration as contemplated in sub-regulation (2), accompanied by all the required supporting documentation, in respect of all persons referred to in section 21(1)(a)(ii), (iii), (iv), (v), (vi) or (vii) of the Act, if they are not already registered as security service providers;
- (c) an authenticated copy of the CK1 and CK2 documentation if the applicant is a close corporation;
- (d) an authenticated copy of the CM1, CM2, CM27 and CM29 documentation if the applicant is a company;
- (e) a list, certified as correct by the duly appointed auditor of the applicant, if the applicant is a company which is not listed publicly, with the names, identity numbers and street addresses of all shareholders of the applicant as at the date when the application for registration is made, or such certified particulars of all shareholders of the applicant who own or control 5% or more of the total shareholding of the applicant if the applicant is a publicly listed company;
- (f) an authenticated copy of the partnership agreement if the applicant is a partnership;
- (g) an authenticated copy of the trust deed and the letter of authorization to the trustees from the Master of the High Court if the applicant is a business trust;
- (h) an authenticated copy of the documentation establishing the foundation if the applicant is a foundation; an authenticated copy of the documentation or authority in terms of which the applicant is established or functions if it is a body of persons other than that referred to in paragraphs (c), (d), (f), (g) or (h);
- (i) a tax clearance certificate from the South African Revenue Service, unless the director dispenses with this requirement for a sound reason after obtaining approval from the Council;

- (k) sufficient information in writing to enable PSIRA to ascertain whether the applicant meets the requirements in regard to infrastructure and capacity necessary to render a security service as contemplated in section 23(2)(b) of the Act and regulation 5 of these regulations; and
- (l) a resolution by the applicant security business, in the form approved by PSIRA, to apply for registration as a security service provider.

Regulation 2 (4) PSIRA may register an applicant security business as a security service provider if:

- (a) the applicant meets the requirements in respect of infrastructure and capacity contemplated in section 23(2)(b) of the Act and regulation 5 of these regulations, or will meet such requirements when commencing with its business activities in the rendering of a security service;
- (b) the applicant demonstrates to the satisfaction of the director, through substantiated factual information, that the applicant is likely to commence with its business activities in rendering a security service within a period of 3 months after such registration; and
- (c) the persons referred to in section 21(1)(a)(iii),(iv), (v), (vi) and (vii) of the Act provide the suretyship or guarantee that the director may deem necessary to ensure compliance with the financial obligations of the applicant towards PSIRA.

Regulation 2 (5) PSIRA may consider the application for registration as a security service provider by a natural person whose criminal record status has not yet been confirmed through the classification of his or her fingerprints if:

- (a) the applicant's fingerprints have been taken in the manner described in regulation 2 (2)(e) of these regulations and have been provided to PSIRA; and
- (b) the Service has performed a preliminary screening on the basis of the applicant's name and identity number and has confirmed the applicant's criminal record status in writing as a result of such screening.

Regulation (6) A person who has immigrated to South Africa during the 10 year period immediately preceding his or her application for registration as a security service provider or who has been resident outside South Africa for an uninterrupted period of at least 1 year during the 10 year period immediately preceding his or her application for registration, must submit an original police or other official clearance certificate on his or her criminal record status from every country outside South Africa where he or she has been resident within the relevant period.

Regulation 2 (7) (a) No amount paid to PSIRA by an applicant in terms of sub-regulation (2)(a)(i), (2)(a)(ii), (3)(a)(i) or regulation 5(2) of these regulations, is refundable if the application for registration is withdrawn by the applicant or if the application is not approved by PSIRA.

- (b) An amount paid to PSIRA as contemplated in sub-regulation (3)(a)(ii) does not affect the liability of the security business in question in respect of payment of the balance of the full applicable amount due in terms of the formula contained in regulation 9(3) as contemplated in sub-regulation (3)(a)(ii), or the balance of the full applicable levies due in terms of the Levies Act, as the case may be.

Regulation 2 (8) A decision of PSIRA contemplated in section 23(6) of the Act to register any applicant as a security service provider may only be taken with due regard to the applicable policies and procedures approved for this purpose by the Council and must be contained in a document signed by the director and in which the decision to register the applicant must be recorded as well as the full reasons on which the decision is based.



SEE EXAMPLE OF ATTACHED PROCEDURES AND APPLICATION FORM



REQUIREMENTS TO REGISTER A BUSINESS

1. Manual of Information to be purchased on registration (please familiarize yourself with the Act and Regulations - IGNORANCE OF THE APPLICABLE LEGISLATION IS NOT AN EXCUSE) - R91-20.
2. Completed application form (SIRA 1 & 2) & relevant documents - street address and administration offices address to be completed in black ink.
3. Registration fee of R2280-00 (VAT included) - cash deposit or bank guaranteed cheque—not refundable—deposit slip to be attached to the application.
 - 3.1. Prescribed amount in respect of two months annual amount of R570-00 (VAT included) - cash deposit or bank guaranteed cheque - deposit slip to be attached to the application.
 - 3.2. Infrastructure assessment of R1710-00 (VAT included) - cash deposit or bank guaranteed cheque - deposit slip to be attached to the application.
 - 3.3. Registration fee of R84-58 (Individual) - not refundable.
4. The following documentation is required for registering a
 - 4.1. Close Corporation - CK Documentation
 - 4.2. Company - CM1, CM2, CM27, CM29, CM31, CM46
 - 4.3. Partnership - Partnership Agreement
 - 4.4. Trust - Trust Documents
 - 4.5. Suretyship Form (SIRA 4) to be signed by all members, directors, partners, trustees of the business. (Attached to SIRA 2) - To be completed in black ink.
 - 4.6. Member's (Director (s), Partner(s), Trustee (s) and Managers must be registered as a security service provider with a Grade "E - B" "Locksmiths & Key Cutters need to apply for accreditation on a short CV with relevant experience or courses done in key cutting or locksmithing".
 - 4.7. Tax Clearance Certificate - Apply at SARS (South African Revenue Service).

- 4.8. VAT Registration Number - Apply at SARS.
- 4.9. PAYE Number - Apply at SARS.
- 4.10. UIT Number - Apply at Department of Labour
- 4.11. COID Number (Compensation for Occupational Injuries & Diseases) - Apply at Department of Labour.

ALL THE ABOVE MUST BE CERTIFIED COPIES OF THE ORIGINAL DOCUMENTATION

- 5. Business Plan for 1 year.
- 6. Resolution stating that they will be able to operate for the next year.
- 7. Specimen Resolution to be submitted on Business Letterhead. (Attached to SIRA 2).
- 8. Office to be equipped with a fax and telephone line - must be an immovable structure.

MONTHLY FEES

- 9. Payable by business - R285-00 per month + 80c (vat included) per Registered security service provider in employ including member, Directors, etc as well as
- 10. R7-98 (vat included) to be deducted from security service providers in employ and to be paid over to SIRA.

ANNUAL FEES TO BE PAID BEFORE OR ON THE 7TH OF EVERY MONTH

11. **BANKING DETAILS**

Payments to be made out to the Private Security Industry Regulatory Authority

Bank:	Nedbank, Arcadia
Account Number:	16333 66200
Branch Code:	16334507

PLEASE NOTE !!!!!

NO APPLICATION (S) WILL BE ACCEPTED IF ANY OF THE ABOVEMENTIONED REQUIREMENTS ARE OUTSTANDING. PLEASE NOTE REGISTRATION FEES & INFRASTRUCTURE ASSESSMENT FEE IS NOT REFUNDABLE

This application must be accompanied by:

1. Payment of the following amounts:

* Application Fee	R2 280-00 (Not Refundable)
* Prescribed amount	R 570-00 (In respect of 2 months)
* Infrastructure and capacity assessment	R1 710-00 (Not Refundable)

SUBTOTAL R4 560-00 (VAT inclusive)

- Duly completed individual applications for registration as security service provider, accompanied by all the required supporting documentation, in respect of all directors/ members/partners/administrators and persons performing executive or managing functions of the applicant security business, as the case may be, if they are not already registered as security service providers;
- An authenticated copy of the CK1 and CK2 documentation if the applicant is a close corporation;
- An authenticated copy of the CM1, CM2, CM27, CM29 and CM31 documentation if the applicant is a company;
- A list, certified as correct by the duly appointed auditor of the applicant, if the applicant is a company which is not listed publicly with the names, identity numbers and street addresses of all shareholders of the applicant as at the date when the applicant for registration is made, or such certified particulars of all shareholders of the applicant who own or control 5% or more of the total shareholding of the applicant if the applicant is a publicly listed company;
- An authenticated copy of the partnership agreement if the applicant is a partnership;
- An authenticated copy of the trust deed and authorization from the Master of the High Court to the trustees if the applicant is a trust;
- An authenticated copy of the documentation establishing the foundation if the applicant is a foundation;
- An authenticated copy of the documentation or authority in terms of which the applicant is established or functions if it is a body or entity other than a company, close corporation, partnership, trust or foundation;
- A tax clearance certificate from the South African Revenue Service, unless the director dispenses with this requirement for a sound reason; and
- A declaration and substantiation to the Authority in such format as may be prescribed by the Authority regarding the applicant's infrastructure and capacity to render a security service (Business Plan).
- A list of branch offices operated by the applicant specifying region, business address, telephone number, facsimile number and the name of the person in control of that branch office;
- Particulars of firearms licenses and permits issued to the applicant security service provider;
- A resolution in such format as may be prescribed by the Authority passed at a duly constituted meeting of the owners/directors/members/trustees/partners of the applicant authorizing the owner/director/member/partner/trustee signing this application to do so.
- Suretyship/guarantee undertaking in the prescribed format (SIRA-4).

IMPORTANT NOTES:

- The onus to ensure that all requirements for application and registration are met rests on the applicant.
- The application fee will not be refunded in the event that the application for registration is refused for whatsoever reason.
- The monthly fees payable by a registered security businesses are an amount of R285-00 plus 80 cents (VAT included) per security officer employed by the security business.
- An amount of R7-98 must be deducted monthly from the wages of each security officer employed by the security business and be paid over to the Authority by the security business.
- Your attention is drawn to the infrastructural and capacity assessment that will be conducted by the Authority in terms of Regulations 5 and 10 (Refer SIRA from 26). Failure to meet these requirements may result in your application for registration being refused.

Security Industry Regulatory Authority
Application Checklist - Business

Name: _____

Date: _____

<u>NO</u>	<u>REQUIREMENT</u>	<u>REGULATION</u>
☐ 1	Duly completed application form (SIRA 2)	2(1)
☐ 2	Payment of prescribed amount	2(3)(a)
☐ 3	Application for registration by an individual in respect of each person who performs or will perform executive or managing functions, a director, member, partner, trustee or administrator of a security business or persons who manage, control or supervise the rendering of a security service, unless already registered as a security service provider, together with requirement as per individual application checklist	2(3)(b)
☐ 4	A surety form in the prescribed format (SIRA 4) in respect of each director, member, partner, trustee or administrator of a security business unless already registered as a security service provider, together with requirements as per individual application checklist.	2(2)
☐ 5	Authenticated copy of:	
5.1	CK 1 and CK2 if applicant is a close corporation	2(3)(c)
5.2	CM1, CM2 CM27, CM29, CM31 if applicant is a company	2(3)(d)
5.3	Partnership agreement if the applicant is a partnership	2(d)(f)
5.4	Trust deed if the applicant is a trust	2(3)(g)
5.5	Documentation establishing the foundation if the applicant is a foundation	2(3)(h)
5.6	Such other documentation establishing the applicant if it is a business entity other than a close corporation, company, partnership, trust or foundation	2(3)(l)
☐ 6	List furnished by the duly appointed auditor of shareholders of the applicant in the event that the applicant is a company	2(3)(e)
☐ 7	Tax clearance certificate from SARS	2(3)(l)
☐ 8	Detailed information on infrastructure	2(3)(k)
☐ 9	Resolution by the applicant business in the prescribed format is apply for registration as a security service provider	2(3)(l)

Specimen resolution to be submitted with application for registration as a security service provider (security business)

BUSINESS LETTERHEAD

Resolution passed at a duly constituted meeting of the _____
(owner/directors/members/trustees/partners) of _____
(registered name of business), _____
(registration number) held at _____ (place) at
_____ (time) on _____ (date).

Resolved:

That _____ (name of natural person) in his/her
capacity as _____ (owner/director/member/trustee/partner) be
and is hereby authorized to make application to the Private Security Industry Regulatory Authority
in terms of Section 21 of the Private Security Industry Regulation Act 58 of 2001 on behalf of
_____ (registered name of business) to be registered as
a security service provider.

Specimen signature of duly authorized person

Certified Correct

_____ Name	_____ Capacity	_____ Signature	_____ Date
_____ Name	_____ Capacity	_____ Signature	_____ Date
_____ Name	_____ Capacity	_____ Signature	_____ Date
_____ Name	_____ Capacity	_____ Signature	_____ Date
_____ Name	_____ Capacity	_____ Signature	_____ Date
_____ Name	_____ Capacity	_____ Signature	_____ Date

(all owners/directors/members/trustees/partners to sign)

THE DIRECTOR
PRIVATE SECURITY
INDUSTRY REGULATORY
AUTHORITY
PRIVATE BAG X 817



Private
Security
Industry
Regulatory
Authority
South Africa

“Suretyship in terms of Regulation 2(4)© of the Regulations made under the Private Security Industry Regulation Act No. 56 of 2001”

I, the undersigned,

Full name and identity number (hereinafter called “the Surety”)

Hereby bind myself jointly and severally in favour of:

THE PRIVATE SECURITY INDUSTRY REGULATORY AUTHORITY
(Established in terms of Act No. 53 of 2001)
(hereinafter called “the Authority”)

As Surety for and co-principal debtor in solidum with:

(hereinafter called “the Applicant Business”)

For the payment of every amount which may now or at any time hereafter be or become owing by the Applicant Business to the Authority in terms of the Private Security Industry Regulation Authority (“the Act”), any Regulations made under the Act, the Private Security Industry Levies Act or any other amount due and payable to the Authority, and for the due performance of every obligation, howsoever arising, which the Applicant Business may now or at any time hereafter be or become bound to perform in favour of the Authority, its predecessor or lawful successors in title.

The Surety hereby agrees that:

1. This agreement shall establish a continuing covering liability on my part for whatsoever amount (s) and whatsoever other obligation (s) will be owing by the Applicant Business to the Authority for the time being, notwithstanding any intermediate discharge or settlement of the amount and notwithstanding insolvency (which term, shall for all intents and purposes of this agreement include sequestration, surrender, winding up and judicial management) or legal disability of the Applicant Business, until the Authority agrees in writing to cancel this agreement.
2. Without restricting the generality of anything hereinbefore contained the Surety's liability hereunder shall not be limited to the principal sum of indebtedness of the Applicant Business to the Authority but shall also cover all amounts making up the indebtedness.
3. An admission or acknowledgement of indebtedness by the Applicant Business shall be binding on the Surety.
4. A certificate signed by the Director of the Authority as to the existence and amount of the indebtedness of the Applicant Business to the Authority at any time and as to the fact that the same is due and payable, shall be sufficient proof, for the purposes of provisional sentence or summary / judgment against the Surety in any competent court, of the existence of the debt (s) referred to in such certificate, and amount (s) owing thereon and the fact that such amount (s) is/are liquidated and due and owing and has/have not been paid.
5. No extension of time or other indulgence in respect of any payment or performance, no delay or omission in demanding or enforcing any payment or performance, no whole or partial release from liability and no compromise or other arrangement in respect of the extent, amount, duration, reduction or postponement of liability, granted or allowed by the Authority to the Applicant Business or to the Surety, and no realization, release or abandonment (whole or partially) of any security for any indebtedness covered hereby, shall discharge the Surety from liability in solidum;

6. In the case of insolvency or other legal disability of, or any general assignment, compromise, composition, scheme or arrangement entered into by or affecting the debts or obligations of the Applicant Business:
 - 6.1. the Authority shall be entitled to prove its claim in the winding up, judicial management, assignment, compromise, composition, scheme or arrangement concerned to the full extent of such claim, and neither the proof of such claim nor the expected receipt of any dividend (s) or payment (s) in respect thereof, shall in any way affect or derogate from the Authority's right to recover from the Surety, the amount (s) for which such claim is proved and any of the sum (s) for which the Surety, as the case may be, may be or become liable to the Authority hereunder,
 - 6.2. be treated and held by the Authority as cash security for the liability hereunder of the Surety to the Authority until such time as the Authority will choose to apply the same towards such liability or, whichever is the sooner, until the Authority will have recovered from all sources the full amount of the indebtedness, any surplus of such cash security then held by it shall be paid over by the Authority to the Surety, and provided further that the Authority shall not be liable for the payment of interest on any such cash security, and
 - 6.3. all costs of an incidental to the proof of the Authority's claim in such winding up, judicial management, assignment, compromise, composition, scheme or arrangement as well as all costs and expenses of maintaining, conserving and/or realizing any security which the Authority may hold for its claim and all sums, including any contribution, payable by the Authority in consequence of the proof of its claim shall be recoverable by the Authority from the Surety;
7. The Authority shall at all times be entitled to apply any amount (s) received by it from the Applicant Business or from the Surety, or from the proceeds of any relevant security or otherwise, to such debt (s) of the Applicant Business as the Authority may in its discretion decide and whenever the Authority may in its discretion think fit to do so.
8. The Surety renounces the benefits of:
 - 1.1. *Excussion* - by renouncing this benefit the Surety understands that the Authority be comes entitled to sue the Surety for the full amount owing under this undertaking without first proceeding against the Applicant Business;
 - 1.2. *Division* - by renouncing this benefit the Surety understands that where there is more than one surety for the Applicant Business' obligations, the Authority will be entitled to sue each surety for the full amount owing under this undertaking and not only for a pro rata share;
 - 1.3. *Cession of action* - by renouncing this benefit the Surety understands that the Authority becomes entitled to sue the Surety without first ceding the Authority's right of action against the Application Business to the Surety;
 - 1.4. *Non Causa Debiti* - by renouncing this benefit the onus of disproving the cause of the debt will rest on the Surety;
 - 1.5. No value received, revision of accounts and errors in calculation - by renouncing these benefits the Surety agrees that the calculation of the amount owed is correct and the onus of proving an error will rest on the Surety; and
9. In terms of Section 45 *vel pluribus reis debendi* - by renouncing this benefit or legal exception the Surety acknowledges that joint sureties signing this document will be jointly and severally liable to the Authority. It shall nevertheless be entirely within the discretion of the Authority whether to proceed against the Surety in such Magistrate's Court or to do so in any other court having jurisdiction.
10. The Surety hereby chooses *domicilium citandi et executandi* for all purposes arising out of this agreement as follows:

THUS DONE AND SIGNED at _____ on _____
In the presence of the undersigned witnesses.

SIGNATURE: _____

WITNESSESS:

1. _____ 2. _____

ENQUIRY

TO BE COMPLETED IN BLOCK LETTERS

Full name and Surname		OFFICE USE ONLY																
Identity Number <table border="1" style="display: inline-table; width: 150px; height: 20px;"><tr><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>																	FIMS Enq No	 /
Town and country of birth		Barcode No:																
Address:		Received	Verify															
		FIMS	Validate															
Date of birth Gender: Male ☐ Female ☐		Scan	SRE															
Have you ever been convicted of any offence? If so, state place, date and sentence:		Signature of applicant																
I certify that the above applicant's signature was placed on this form in my presence and his/her fingerprints taken by my: Signature of official responsible																		
Initials and surname Designation Business address (street address) Date Place																		
LEFT THUMB Fold		Reason for enquiry: RIGHT THUMB Fold																
Thumb	Forefinger	Middle finger	Ring finger	Little finger														
1 RIGHT HAND	2	3	4	5 RIGHT HAND														
6 LEFT HAND	7	8	9	10 LEFT HAND														
LEFT HAND (Plain impressions of four fingers taken simultaneously)		RIGHT HAND (Plain impressions of four fingers taken simultaneously)																

Indicate the nature of the security service (s) performed/to be performed (mark with "X")

01	GUARDING AND/OR PATROLLING: COMMERCIAL, INDUSTRIAL OR RESIDENTIAL	02	SAFEGUARDING ASSETS IN TRANSIT/PROVIDING SECURE TRANSPORT	03	PROVIDING CLOSE PERSONAL PROTECTION/ BODYGUARDING	04	PROVIDING ADVICE ON THE PROTECTION OF PERSONS, ANY OTHER SECURITY SERVICE OR THE USE OF SECURITY EQUIPMENT
05	PROVIDING REACTION OR RESPONSE SERVICES	06	ENSURING SAFETY AND ORDER ON PREMISES (SPORTING, RECREATIONAL ENTERTAINMENT)	07	MANUFACTURING, IMPORTING, DISTRIBUTING OR ADVERTISING OF MONITORING DEVICES	08	FUNCTIONING AS PRIVATE INVESTIGATOR
09	PROVIDING SECURITY TRAINING OR INSTRUCTION	10	INSTALLING, SERVICING OR REPAIRING SECURITY EQUIPMENT	11	PROVIDING SERVICES OF A LOCKSMITH	12	MONITORING SIGNALS FROM ELECTRONIC SECURITY EQUIPMENT (SECURITY CONTROL ROOM)
13	MAKING PERSONS OR THEIR SERVICES AVAILABLE FOR RENDERING OF A SECURITY SERVICE	14	PROVIDING SECURITY AT SPECIAL EVENTS	15	"CAR WATCH" OR RELATED ACTIVITIES	16	OTHER (please specify below)

CITIZENSHIP

SOUTH AFRICAN CITIZENSHIP		VALID PERMANENT RESIDENT PERMIT FOR SOUTH AFRICA		PERMIT NUMBER		DATE OF ISSUE	
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐	☐	☐	☐	☐
☐	☐	☐	☐				

Notes on documents to be attached.

Check list for documents to be attached:

1. Authenticated copy of first page of official identity document of the applicant.
2. Proof of permanent resident status in South Africa if the applicant is not a South African citizen and if not a SA citizen or permanent resident, whether the applicant submitted an application with supporting documentation in terms of Section 23(6) of the Act.
3. An authenticated, recent, clear passport size photograph of the applicant.
4. A clear and complete set of fingerprints of the applicant on the form used by the Service for the purpose.
5. An original police or other official clearance certificate on the criminal record status of the applicant in the event that the answer to question 2 above is "yes".
6. An original clearance certificate materially satisfying the requirement in regulation 4 of the regulations in terms of the Act if the answer to question 3 above is "yes".
7. An original certificate or other proof of acceptable to the Authority that the applicant has complied with the applicable training requirements contemplated in regulation 3 of the regulations in terms of the Act.
8. A properly completed request for preliminary screening by the Service on the basis of the applicant's name and identity number, if this process is followed.
9. The relevant application and prescribed amount in respect of registration as follows:

Application Fee: R48-10 (not refundable)

Prescribed amount in respect of registration for the period of 1 month R7-98

SUB TOTAL	<u>R56-08</u> (not refundable)
Identification Card	R28-50
<u>TOTAL</u>	<u>R84-58</u> (VAT inclusive)



REQUIREMENTS TO REGISTER AS A SECURITY OFFICER

1. Applicant to provide a completed application form (SIRA-1) & relevant documents.
2. Authenticated copy of first page of ID documents.
3. To provide proof of permanent residence status in South Africa if the applicant is not a South African citizen.
4. The Act requires, as a general rule that South African citizens and those with permanent resident status, qualify for registration. However, this provision limiting the entry of such persons is balanced, by SECTION 23(6), granting the Authority the power to dispense with this requirement should good cause be shown and on grounds which are not in conflict with the purpose of the Act and the objects of the Authority. The following factors are taken into consideration:
 - * The status of the foreigner within the country i.e. refugee, temporary residence permit, visitor's permit, study permit, work permit, etc.
 - * Whether the applicant applied for permanent residence status or qualifies for citizenship and the status of such application or qualification.
 - * The length of an applicant's stay in the country. Applications of persons who have resided in the country for at least 5 years will generally be considered more favourably than those in respect of a lesser period of stay.
 - * Which of the other requirements for registration in terms of Section 23(1) of the Act are met.
 - * Whether the applicant can produce a criminal record clearance certificate from the South African Police Service for his/her length of stay in the country.
 - * Whether the applicant can submit proof of a criminal record clearance from his/her country of origin and other countries he/she resided in as contemplated in Regulation 2(6) of the Private Security Industry Regulations, 2002 and if not, reasons for not being able to do so.
 - * Whether the applicant has previously worked in a similar or comparable industry and whether he/she has earned the requisite trust in other ways. References from previous employment must be submitted and verified.
 - * Any other written references from previous employment as well as character references.
 - * The personal circumstances of the applicant seeking registration and subsequent employment within the Private Security Industry.
 - * The character / type of the work the applicant intends performing.

Any other relevant information that the applicant feels the Authority should take into consideration to objectively consider the application.
5. Authenticated, recent, clear passport size photograph of the applicant.
6. Obtain an original police or other official clearance certificates on the criminal record status of the applicant in the event that the answer to question 2 in the application form is "yet".
7. An original clearance certificate materially satisfying the requirement in regulation 4 of the regulations in terms of the Act, if the answer to question 3 in the application form is "yet".
8. Submit a clear and complete set of fingerprints of the applicant on the form used by the South African Police Service for this purpose.
9. An original certificate or other proof acceptable to the Authority that the applicant has complied with the applicable training requirements contemplated in terms of the Act.
10. A properly completed request for preliminary screening by the South African Police Service on the basis of the applicant's name and identity number, if the process is followed (id clearances)

11. The relevant application and prescribed amount in respect of registration as follows:

11.1.	Application fee	R48-10
11.2.	Prescribed amount in respect for the period of 1 month	R7-98
11.3.	<u>SUBTOTAL</u>	<u>R56-08</u>
11.4	Identification Card	R28-50
11.5.	<u>TOTAL</u>	<u>R84-58 (VAT inclusive)</u>

ANNUAL FEES ARE TO BE PAID OVER BEFORE OR ON THE 7TH OF EVERY MONTH.

12. Banking Details

Payments to be made out to the

Private Security Industry Regulatory Authority

Bank:

Nedbank, Arcadia

Account Number:

16333 66200

Branch Code:

16334507

EXAMPLE ONLY



INFORMATION BROCHURE—SECURITY OFFICER

1. What to do if you want to become a security officer

If you want to become a security officer, make sure that you receive your training at a training establishment that is accredited with the Private Security Industry Regulatory Authority (PSIRA).

Be aware of “fly-by-night” training centres and first check with PSIRA whether or not the training establishment you go to for training is accredited with PSIRA before you pay your money—call the Training Hotline on (012) 337 5506 to check.

Remember that paying your money and getting a certificate without actually doing any training is illegal. More importantly, you are putting your life in danger. If you find yourself in a life-threatening situation, you may not know how to respond if you have not received the correct training. You could also be endangering the lives of your colleagues, your clients and the public.

If you have experienced problems with a PSIRA accredited training establishment, please do not hesitate to contact PSIRA's training services division on (012) 337 5506 / 337 5513.

2. You need to register

After you have completed your training, you need to register at your nearest PSIRA office. No person may work as a security officer, unless he or she is registered and trained as a security service provider in terms of Section 20 of the Private Security Industry Regulation Act, 2001 (Act No. 56 of 2001).

3. How to register

- 3.1. Complete and sign the SIRA-1 application form;
- 3.2. Submit a clear, certified and signed set of fingerprints;
- 3.3. Provide PSIRA with a certified copy of the first page of your official identity document or proof of your permanent resident status in South Africa;
- 3.4. The Act requires, as a general rule that South African citizens and those with permanent resident status, qualify for registration. However, this provision limiting the entry of such persons is balanced, by Section 23(6), granting the Authority the power to dispense with this requirement should good cause be shown and on grounds which are not in conflict with the purpose of the Act and the objects of the Authority. The following factors are taken into consideration:
 - 3.4.1. The status of the foreigner within the country i.e. refugee, temporary residence permit, visitor's permit, study permit, work permit etc.
 - 3.4.2. Whether the applicant applied for permanent residence status or qualifies for citizenship and the status of such application or qualification.
 - 3.4.3. The length of an applicants' stay in the country. Applications of persons who have resided in the country for at least 5 years will generally be considered more favourably than those in respect of a lesser period of stay.

- 3.4.4. Which of the other requirements for registration in terms of Section 23(1) of the Act are met.
- 3.4.5. Whether the applicant can produce a criminal record clearance certificate from the South African Police Service for his/her length of stay in the country.
- 3.4.6. Whether the applicant can submit proof of a criminal record clearance from his/her country of origin and other countries he/she resided in as contemplated in Regulation 2(6) of the Private Security Industry Regulations, 2002 and if not, reasons for not being able to do so.
- 3.4.7. Whether the applicant has previously worked in a similar or comparable industry and whether he/she has earned the requisite trust in other ways. References from previous employment must be submitted and verified.
- 3.4.8. Any other written references from previous employment as well as character references.
- 3.4.9. The personal circumstances of the applicant seeking registration and subsequent employment within the Private Security Industry.
- 3.4.10. The character / type of the work the applicant intends performing.
- 3.4.11. Any other relevant information that the applicant feels the Authority should take into consideration to objectively consider the application.
- 3.5. Hand in a recent, clear and certified passport size photograph of yourself.
- 3.6. Submit your original training certificate or proof, acceptable to PSIRA, that you have complied with the applicable training requirements.
- 3.7. Pay PSIRA an application fee of R48-10 for registration as a security officer, R28-50 for an identification card as well as R7-98; and
- 3.8. A monthly fee of R7-98.

4. Requirements for registration

Any person who wants to become a security officer, may be registered as a security service provider if the applicant is a fit and proper person to render a security service, and -

- 4.1. is a citizen of or has permanent resident status in South Africa (see also information above pertaining to non South African citizens);
- 4.2. is at least 18 years of age;
- 4.3. has done the relevant training for registration as a security service provider;
- 4.4. was not found guilty of a criminal offence specified in the Schedule within 10 years before the submission of application for registration;
- 4.5. was not found guilty of improper conduct in terms of the Private Security Industry Regulation Act, 2001 (Act No. 56 of 2001) within five years before the submission of the application to PSIRA;
- 4.6. Hand in a clearance certificate, if the applicant is a former member of any official military, security, police or intelligence force or service in South Africa or elsewhere;
- 4.7. Is mentally sound;
- 4.8. Is not currently employed in the Public Service;
- 4.9. Has paid the relevant application fee; and
- 4.10. Is not a person in the permanent employee of the Service, the Directorate of Special Operations, the National Intelligence Agency, the South African Secret Service, the South African National Defence Force or the Department of Correctional Service.

5. The registration process

As part of the registration process and before you can be registered as a security officer, you must undergo a finger print screening classification by the Criminal Record Centre of the SAPS, to ensure that you have never been convicted of a Scheduled criminal offence. As a result, the registration process takes 6 to 8 weeks before it is finalized.

You will receive a certificate of registration and an identification card from PSIRA as soon as your registration process is finalized and on condition that PSIRA approved your application for registration.

For more information, please visit the Authority's website: www.psira.co.za

6. PSIRA's offices are situated at:

- 6.1. PSIRA Head Office:
481 Belvedere Street, Arcadia, Pretoria, 0002
Helpdesk: (012) 337-5530 / 337-5506 / 337-5510 / 337-5520
- 6.2. KwaZulu-Natal Office:
41 Williams Road, Umbilo, Durban, 4001
Helpdesk: (031) 305-5687
- 6.3. Eastern Cape Office:
1st Floor, Southern Life Building, 84 Govan Mbeki Street, Port Elizabeth, 6000
Helpdesk: (041) 585-1848
- 6.4. Western Cape Office:
2nd Floor, Thibault Building, Hans Strydom Avenue, Thibault Square, Cape Town, 7500
Helpdesk: (021) 425-2370
- 6.5. Mpumalanga Office:
21 Brander Street, Nelspruit, 1200
Helpdesk: (013) 752-4059
- 6.6. Limpopo Office:
Room 204, 2nd Floor, Parklane Building, 76 Hans van Rensburg Street, Polokwane, 7001
Helpdesk: (015) 297-0209
- 6.7. Kokstad Office:
25 Dower Street, Kokstad, 4700
Helpdesk: (039) 727-3005/8
- 6.8. Johannesburg Office:
1st Floor, Intec House, 130 c/o Marshall & Eloff Street, Johannesburg, 2001
Helpdesk: (011) 331-0300

Security Industry Regulatory Authority
Application Checklist - Individual

Name: _____

Date: _____

☐ NO	REQUIREMENT	REGULATION
☐ 1	Duly completed application form (SIRA 12)	2(1)
☐ 2	Payment of prescribed amounts	2(2)a
☐ 3	Authenticated copy of first page of ID document	2(2)b
☐ 4	Proof of permanent residence (if not a SA citizen)	2(2)c
☐ 5	Application and supporting information (if not a SA citizen nor permanent resident)	23(6)
☐ 6.	Authenticated recent clear passport size photo of applicant	2(2)d
☐ 7.	Clear and complete set of applicant's fingerprints	2(2)e
☐ 8.	Clearance certificate on criminal record status of applicant if answer to question 2 on the application form is "yet"	2(2)g
☐ 9.	Proof of accredited training	2(2)l
	* Grade E for individual applications	3(2)
	* Other grade required in terms of nature of security service to be performed	3(2)
☐ 10.	* Grade B for executives, managers, directors, members, partners, trustees, administrators or persons who manage, control or supervision to rendering of a security service	3(3)
☐ 10.	Clearance certificate in respect of ex-members of any official, military, security, police or intelligence force or service (if the answer to question 3 on the application form is "yet")	2(2)h
☐ 11.	Suretyship form in respect of directors, members, partners, trustees, or administrators of a security business	2(2)(j)

3. Clearance certificate: ex-member of any official military, security, police or intelligence force or service

Regulation 4. (1) In this regulation, unless the context indicates otherwise:

“former employer” means any official military, security, police or intelligence force or service, whether in South Africa or elsewhere, or its successor in law, of which an applicant contemplated in section 23(1)(f) of the Act is a former member.

Regulation 4 (2) The clearance certificate contemplated in section 23(1)(f) of the Act must be completed in the form contained in the Schedule to these regulations.

Regulation 4 (3) An applicant contemplated in section 23(1)(f) of the Act must, subject to this regulation, submit such clearance certificate from all his or her former employers.

Regulation 4 (4) Where an applicant submits a certificate which does not in the opinion of the director materially satisfy the requirements of sub-regulation (2), or if the director is of the opinion that further enquiry or investigation is necessary, the director may postpone consideration of the application for registration pending rectification of the certificate to the satisfaction of the director, or finalization of such enquiry or investigation as may be necessary.

Regulation 4 (5) Where an applicant's former employer no longer exists or where it is demonstrated by the applicant to the satisfaction of PSIRA that it is not possible or reasonably practical to submit a clearance certificate containing all the required particulars, PSIRA may:

- (a) hold over the application for registration pending further investigation and consideration of the background of the applicant; or
- (b) if it is reasonable to do so in the circumstances, and after complying with the provisions of regulation 2(8) of these regulations and obtaining the consent of the Council, register the applicant as a security service provider if it considers the applicant a fit and proper person to render a security service.

Regulation 4 (6) The particulars in a clearance certificate must be taken into account to determine whether the applicant is a fit and proper person as contemplated in section 23 (1) of the Act.

Regulation 4 (7) A former employer must, at the request of an applicant contemplated in section 23(1)(f) of the Act, furnish the applicant with a properly completed clearance certificate within a period of 30 days after receipt of the request or within such other period as may be reasonable in the circumstances.



Clearance certificate in terms of the Regulations of the Act.

**CLEARANCE CERTIFICATE IN TERMS OF SECTION 23(1)(f) OF THE
PRIVATE SECURITY INDUSTRY REGULATION ACT, 2001**

1. Particulars of applicant's former employer

Name of force or service

Street address of head office (including city, province and country)

Telephone number: _____ **Facsimile number:** _____

E-mail address: _____

Postal address

Name, address and telephone number of contact person

2. Particulars of former employee**Full first names and surname of employee**

Identity number: _____**Passport number:** _____**Last known address**

Former employee's force, service or personnel number: _____**Date of commencement of employment:** _____**Date of termination of employment:** _____**Rank at termination of service:** _____**Capacities in which employed:**

Reason for termination of employment

Reasonable particulars of any misconduct by former employee (findings of guilty on charges of misconduct, penalties imposed, dates and other relevant particulars)

If there were disciplinary proceedings pending against the former employee at the date of termination of service, factual information on the merits of the charges and whether any termination of service occurred in order to avoid disciplinary proceedings, is required

3. Declaration

I, the undersigned, declare that the information provided on this form is true and correct and that I have the necessary authority to provide the information.

Signature_____ **Date**_____

Name_____

Position in force of service_____

Telephone number_____

4. Consent by former employee to former employer to furnish personal information relating to employment record and matters related thereto.

I, the undersigned, hereby give consent to my former employer contemplated in this form to provide the information relating to my employment record and related issues provided for in this form, to the Private Security Industry Regulatory Authority.

Signature of former employee _____ Date _____

Name _____

Position in force of service _____

Telephone number _____

EXAMPLE ONLY

4. Infrastructure and capacity necessary to render a security service

Regulation 5 (1) Every security business applying for registration as a security service provider must, for the purposes of compliance with the provisions of section 23(2)(b) of the Act:

- (a) furnish factually substantiated information in writing to PSIRA on the nature and scope, including the geographical area, of the applicant's intended and likely activities in rendering a security service for at least a period of 1 year after commencing with its business activities; and
- (b) demonstrate, through a declaration with such substantiation as may be necessary, to the satisfaction of PSIRA that the applicant will meet the following minimum requirements at the commencement of its business activities in the rendering of a security service, and is likely to continue to meet these requirements for at least 1 year after such commencement.
 - (i) the applicant has at its disposal an administrative office, consisting of at least one room dedicated for this purpose, which must be an immovable structure, situated at a place that is reasonably accessible to the inspectors of PSIRA, the clients of the security business and the security officers that are used by it to render a security service, and at which reasonable office hours are maintained;
 - (ii) the applicant's administrative office contains all the equipment which is reasonably necessary for the effective management and administration of the affairs of the security business, on the basis of the information furnished in terms of the provisions of sub-regulation (1)(a), in accordance with the provisions of the Act, and, without limiting the generality of the aforesaid requirement, is serviced by landline telephone communication which includes a reliable facility to receive and transmit facsimiles, and the office contains a hard copy or electronic filing system for the orderly keeping of all records and documents contemplated in regulation 10 of these regulations;
 - (iii) the applicant's administrative office and internal systems meet any reasonable requirement that PSIRA determines in terms of the Act;
 - (iv) the applicant has at its disposal as many administrative offices satisfying the requirements of this regulation, as well as such other premises and physical facilities as may be reasonably necessary, in view of the nature, extent and geographical location of the applicant's activities;
 - (v) the affairs of the applicant are managed and controlled by appropriately experienced, trained or skilled persons;
 - (vi) the applicant has at its disposal a sufficient number of registered and appropriately trained and skilled security officers for the rendering of a security service for which it has contracted or is likely to contract;
 - (vii) the security officers used by the applicant in the rendering of a security service are properly controlled and supervised;
 - (viii) the applicant has at its disposal a sufficient number of adequately skilled administrative staff members for the purpose of the administration of the affairs of the applicant in accordance with the provisions of the Act and any other applicable law;

- (ix) the applicant has at its disposal the financial means to ensure payment of the lawful wages to all the security officers and administrative staff used by it in connection with the rendering of a security service, as well as to ensure compliance with all its other statutory financial obligations;
- (x) the applicant has all the necessary equipment, including vehicles and properly trained working animals, if applicable in the circumstances, as well as the uniforms, clothing and equipment that must be issued to its security officers in view of the nature of their functions, at its disposal to enable it to render a proper security service for which it has contracted or is likely to contract; and
- (xi) the applicant is in lawful possession of the firearms and other weapons that are necessary to render the security service in respect of which it has contracted.

Regulation 5 (2) If PSIRA deems it necessary to conduct an inspection or any further inspection to establish whether an applicant meets any of the requirements contemplated in sub-regulation (1), the applicant must pay the amount determined by PSIRA for this purpose before an inspection will be undertaken.

Regulation 5 (3) If at any time after its registration as a security service provider, a security business fails or refuses at the written request of the director to demonstrate to the satisfaction of the director :

- (a) that it still has at its disposal the infrastructure and capacity on the basis of which it was so registered; or
- (b) that its current infrastructure and capacity as measured in terms of the criteria contemplated in sub-regulation (1)(b), are reasonably sufficient for the purposes of the current nature and scope of its activities as a security service provider,

PSIRA may withdraw its registration thereof as a security service provider if the defects are not rectified within such a reasonable period as the director may determine for this purpose in a notice served on the security business.

5. Register of security service providers and related issues

Regulation 6. (1) The register of security service providers, which is kept by PSIRA in terms of section 24 of the Act, contains the following particulars:

- (a) the registration number on the registration certificate issued by PSIRA in terms of section 25 of the Act or the number contemplated in regulation 14(3)(a)(i) of these regulations;
- (b) the date on the registration certificate referred to in paragraph (a);
- (c) the residential and business or employment address (street address and postal address) and telephone contact particulars of the security service provider;
- (d) the full first names, surname, identity number, date of birth and citizenship of the security service provider if such provider is a natural person;
- (e) particulars of the security service or services rendered by the security service provider as well as the category of security service providers into which the provider is classified by PSIRA;

- (f) the name of the security business, every name under which the security business is trading, the branches of the security business, the name of every person referred to in section 21(1)(a) of the Act, as well as the particulars contemplated in regulation 2 (3)(e) of these regulations;
- (g) the name of the employer of a security service provider who is a security officer;
- (h) particulars of every conviction of improper conduct in terms of the Act and the repealed legislation, every conviction of an offence specified in the schedule to the Act and in the schedule to the repealed legislation, every conviction of an offence in terms of section 38 of the Act and every conviction of an offence in terms of section 35 of the repealed legislation;
- (i) particulars of firearm licenses and permits issued to a security service provider;
- (j) the particulars contained in the register contemplated in section 13 of the repealed legislation; and
- (k) any other particulars deemed necessary by PSIRA to be included in the register.

Regulation 6 (2) An address of a security service provider contained in the register contemplated in sub-regulation (1) may be used by PSIRA for the purposes of serving any document or notice in terms of the Act.

6. Renewal of registration

Section 22 The Minister may prescribe procedures and principles in respect of periodic applications for the renewal of registration by registered security service providers and the conditions and requirements for the granting of such applications.

7. Requirements for registration

Section 23. (1) Any natural person applying for registration in terms of section 21(1), may be registered as a security service provider if the applicant is a fit and proper person to render a security service, and:

- (a) is a citizen of or has permanent resident status in South Africa;
- (b) is at least 18 years of age;
- (c) has complied with the relevant training requirements prescribed for registration as a security service provider;
- (d) was not found guilty of an offence specified in the Schedule within a period of 10 years immediately before the submission of the application to PSIRA;
- (e) was not found guilty of improper conduct in terms of this Act within a period of five years immediately before the submission of the application to PSIRA;
- (f) submits a prescribed clearance certificate, together with such other information as PSIRA may reasonably require, if the applicant is a former member of any official military, security, police or intelligence force or service in South Africa or elsewhere;
- (g) is mentally sound;
- (h) is not currently employed in the Public Service in circumstances where such registration may conflict with a legislative provision applicable to the applicant;
- (i) has paid the relevant application fee; and
- (j) is not a person referred to in subsection (5).

Section 23 (2) A security business applying for registration as a security service provider in terms of section 21(1), may be so registered only if :

- (a) every natural person referred to in section 20(2) complies with the requirements of subsection (1) and is not an unrehabilitated insolvent; and
- (b) such security business meets the prescribed requirements in respect of the infrastructure and capacity necessary to render a security service.

Section 23 (3) PSIRA may cause any inspection to be held which it deems necessary to establish whether an applicant meets the requirements contemplated in subsection (2)(b), against payment by the applicant of an amount determined by PSIRA for this purpose.

Section 23 (4) PSIRA may refuse the registration of any person who

- (a) at the time of submission or consideration of the application, is under State investigation in respect of an offence specified in the Schedule or who is being criminally prosecuted in respect of such an offence; or
- (b) was convicted of an offence specified in the Schedule more than 10 years immediately before the submission of the application for registration to PSIRA.

Section 23 (5) Despite any provision to the contrary, a person in the permanent employ of the Service, the Directorate of Special Operations, the National Intelligence Agency, the South African Secret Service, the South African National Defense Force or the Department of Correctional Services may not be registered as a security service provider whilst so employed.

Section 23 (6) Despite the provisions of subsections (1) and (2), PSIRA may on good cause shown and on grounds which are not in conflict with the purpose of this Act and the objects of PSIRA, register any applicant as a security service provider.

8. Register of security service providers

Section 24. PSIRA must keep a register in which it must enter the name and prescribed particulars of every security service provider registered in terms of this Act.

9. Registration and identification certificates

Section 25. PSIRA must, in the form prescribed and on such conditions as it may determine, issue a certificate of registration to any person and a certificate of identification to any natural person, registered as a security service provider.

10. Suspension, withdrawal and lapsing of registration

Section 26. (1) If there is a prima facie case of improper conduct in terms of this Act, or of the commission of an offence referred to in the Schedule, against a security service provider, PSIRA may suspend the registration of the security service provider :

- (a) pending the conclusion of an investigation or enquiry by PSIRA into the alleged improper conduct; or
- (b) pending the conclusion of the criminal investigation by the State into the offence in respect of that security service provider, or a determination by the prosecuting authority or the finalization of criminal proceedings in regard to the offence.

Section 26 (2) PSIRA may suspend the registration of a security business if any of the grounds contemplated in subsection (1) pertain to a natural person referred to in section 20(2).

Section 26 (3) The effect of a suspension of registration is that the security service provider whose registration is suspended may not render any security service, unless the prior written permission of PSIRA has been obtained, but during the period of such suspension the security service provider is still bound by all the obligations of a registered security service provider provided for in this Act and in the Levies Act.

Section 26 (4) PSIRA may, subject to section 5(3), withdraw the registration of a security service provider by written notice served on the security service provider if

- (a) the security service provider has furnished to PSIRA information in or in connection with the application for registration which is false;
- (b) there was some material irregularity in the registration of the security service provider concerned;
- (c) the registration was granted in error or on the basis of incorrect information furnished by any person, including any department or organ of State, to PSIRA;
- (d) at any time after registration, the security service provider.
 - (i) is found guilty of an offence specified in the Schedule;
 - (ii) is found guilty of improper conduct in terms of this Act;
 - (iii) is no longer a fit and proper person to render a security service; or
 - (iv) does not comply with one or more of the requirements for registration referred to in section 23(1)(a), (b), (g), (h) and (j), or in section 23(2);
- (e) (e) in the case of a security business, the registration of a person referred to in section 20(2) is withdrawn in terms of paragraphs (a), (b), (c) or (d); or in the case of a security business, any of the persons referred to in section 20(2) is for any other reason not registered as a security service provider.

Section 26 (5) The registration of a security service provider lapses if it is not renewed as contemplated in section 22.

Whenever the registration of a security service provider is suspended or withdrawn in terms of this Act or the Levies Act, or if it lapses, the security service provider must forthwith return to PSIRA the certificate of identification or the certificate of registration, as the case may be, issued in terms of section 25.

Section 26 (7) PSIRA may on application by a security service provider suspend or withdraw the registration of that security service provider in such circumstances and on such conditions as may be prescribed.

Section 26 (7) (8) PSIRA may uplift the suspension of the registration of a security service provider if there is reason to do so.

11. Change of name and status of security service provider

Regulation 7. (1) An application to change the name of a registered security business as contained in the register contemplated in regulation 6 of these regulations, including the name under which such business is trading, must be submitted to the director on the form approved for this purpose by PSIRA and must be accompanied by the documentation required in terms of the form as well as the amount determined by PSIRA for this purpose.

Regulation 7 (2) Notification of a change in the name of a natural person registered as a security service provider must be submitted to the director, within a period of 7 days of the change occurring, on the form approved for this purpose by PSIRA, accompanied by the documentation as required in terms of the form as well as the amount determined by PSIRA for this purpose.

Regulation 7 (3) A security business which changes its name and trades under or uses such a changed name or trades under any name not contained in the register contemplated in regulation 6 of these regulations, without having received the approval of PSIRA as contemplated in sub-regulation (1), or a security service provider who, without sufficient cause, fails to submit the notification form as required in terms of sub-regulation (2), is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 6 months.

Regulation 7 (4) (a) An application to change the legal status or the nature of a security business registered as a security service provider must be submitted to the director on the form approved for this purpose by PSIRA and must be accompanied by the documentation required in terms of the said form, as well as the amount determined by PSIRA for this purpose.

(b) An application contemplated in paragraph (a) is considered in terms of the policy and procedure approved by PSIRA for this purpose and may be granted on such conditions as determined by PSIRA.

Regulation 7 (5) (a) A registered security service provider who wishes to occupy a position contemplated in section 21(1)(a)(ii), (iii), (iv), (v), (vi) or (vii) of the Act in regard to a particular security business must submit an application to the director on the form approved for this purpose by PSIRA and the application must be accompanied by the documentation required in terms of the form, as well as the amount determined by PSIRA for this purpose.

(b) A registered security service provider who assumes a position contemplated in section 21(1)(a)(ii), (iii), (iv), (v), (vi) or (vii) of the Act in regard to a particular security business without obtaining the approval of PSIRA as contemplated in paragraph (a), is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 12 months.

12. Change with regard to information submitted to PSIRA**Regulation 8. (1)** A security service provider:

- (a) must inform PSIRA within 10 days of any change in regard to any information submitted in writing to PSIRA in terms of a provision of or an application in terms of the Act, or information previously submitted to the Board in writing in terms of a provision of or an application in terms of the repealed legislation; and
- (b) must, in the case of a security business, annually during November submit a return to PSIRA with the information required on the form approved by PSIRA for this purpose.

13. Certificates of registration, identification and appointment**Regulation 9.**

- (1) The certificate of registration contemplated in section 25 of the Act contains the name and registration number of the security service provider, such further information as the Authority may determine and the seal of the office of the director.
- (2) The certificate of identification contemplated in section 25 of the Act is in the form of a credit card, includes a photograph of the security service provider, contains the name and registration number of the security service provider and such further information as the Authority may determine.
- (3) The certificate of appointment of an inspector of the Authority contemplated in section 31(3) of the Act, must comply with every applicable requirement prescribed in terms of section 334(3)(b) of the Criminal Procedure Act, 1977 (Act No. 51 of 1977), must contain the statement that the inspector is a peace officer for the national territory of the Republic for the purpose of exercising the powers contemplated in sections 40, 41, 44, 45, 46, 47, 48, 49 and 56 of the Criminal Procedure Act, and must contain the name and address of the Authority, a photograph of the inspector, the name of the inspector and such further particulars as determined by the Authority.
- (4) The Authority may, on application of a security service provider and after payment of the amount determined by the Authority for this purpose, issue a new certificate of registration or a new certificate of identification to the security service provider if the Authority is satisfied that the original certificate has been materially damaged, has been destroyed, has been lost, when the circumstances contemplated in regulation 7 of these regulations are present, when registration is renewed as contemplated in section 22 of the Act, or when there is some other sound reason for issuing a new certificate.
- (5) A security service provider must always carry his or her certificate of identification when he or she is rendering a security service or wearing the uniform of a security business in public and must immediately produce the certificate when requested to do so by a member of the Service, an inspector of the Authority, a client to whom the security service provider is rendering a security service, a person authorized by such client in writing, or by any other person with a legitimate interest to ascertain the registration status and identity of the security service provider.

- (6) A security service provider who:
- (a) without sufficient cause fails or refuses to comply with a request contemplated in sub-regulation (5);
 - (b) changes, falsifies information on, defaces, destroys or fails to take reasonable steps to safeguard his or her certificate of registration or certificate of identification; or
 - (c) without a legal ground justifying such conduct, withholds, retains or is in possession of the certificate of registration or certificate of identification of another security service provider,

is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 6 months.

14. Keeping of records and documents

Regulation 10. (1) Every security business must, subject to this regulation, keep all the records and documents concerning the management, administration and other matters relating to the rendering of security service by it.

Regulation 10 (2) Every security business must, subject to this regulation, keep the originals of all records and documents contemplated in this regulation in a secure and orderly manner, available for inspection by PSIRA.

- (a) at the administrative office contemplated in regulation 5(1) of these regulations, or if it has more than one administrative office, at the relevant office servicing the region or the activities to which the record or documentation relates, or at the office or place approved for this purpose by the director in writing on application by the security business concerned; and
- (b) for a period of at least 4 years from the date of their coming into existence, unless another legal provision provides for a longer period or the director in writing directs that they be kept for such longer period as the director may determine.

Regulation 10 (3) The records and documents to which this regulation relates must be updated, to the extent that their nature requires or permits it, by the security business in question when any relevant change occurs, as soon as it is reasonably practicable to do so, but in any event not later than 7 days after the change in question.

Regulation (4) (a) Unless otherwise directed in terms of sub-regulation (5), or unless the nature of the record or document or some other applicable legal provision dictates otherwise, all records and documents falling under this regulation may be kept and maintained in an electronic format through the use of an appropriate computer program.

- (b) A security business which keeps any records or documents in electronic format must ensure that an accurate and correctly dated and marked electronic back-up copy of all such records and documents is separately created and stored at least every day on which it renders a security service and on which a change to the information on the record or document has occurred, or a new record, document or information is added.
- (c) The electronic back-up copy contemplated in paragraph (b) must be kept safely and available for inspection by PSIRA.

Regulation 10 (5) The director may at any time issue a directive to a security business, or to all or any category or class of security businesses, regarding any of the following –

- (a) the office or other premises where any or all records or documents contemplated in this regulation must be kept;
- (b) the period for which any such record or document must be kept, which period may be longer than that provided for in sub-regulation (2)(b); or
- (c) the keeping of any particular records or documents or any other aspect regarding the keeping of records or documents.

Regulation 10 (6) Every person referred to in section 21(1)(a)(ii), (iii), (iv), (v), (vi) or (vii) of the Act must take all reasonably practicable steps within his or her powers, capacity or functions to ensure that the security business in question complies with all the obligations in terms of this regulation.

Regulation 10 (7) The records and documents that must be kept as contemplated in this regulation, include:

- (a) a list or register with the full first names and surname, identity number, registration number and residential address of every security officer and other person employed by the security business, as well as a list with the full first names, surname, identity number, registration number and residential address of every person who is an official of the security business but who is not in its employ;
- (b) a list or register with the full first names and surname, identity number, registration number and residential address of every security officer made available or whose services are made available by the security business to another security business or to any person;
- (c) a register containing full information on the wages and remuneration paid to all security officers and other employees of the security
- (d) business, as well as all deductions from such wages, materially in the form contained in BCEA 2 of the Basic Conditions of Employment Act, 1997 (Act No. 75 of 1997);
- (e) true copies of all payslips in respect of security officers and other employees of the security business, materially in the form contained in BCEA 4 of the Basic Conditions of Employment Act, 1997 (Act No. 75 of 1997);
- (f) an attendance register in respect of all security officers and other employees of the security business, materially in the form contained in BCEA 3 of the Basic Conditions of Employment Act, 1997 (Act No. 75 of 1997);
- (g) a posting sheet containing the following particulars in respect of every day or part of a day during which the security business renders a security service:
 - (i) (i) the full first names and surname, and the level of accredited security training of every security officer utilized in connection with the rendering of a security service in respect of that day or part thereof;
 - (ii) (ii) the registration number of every such security officer;
 - (iii) (iii) the name of every client to whom a security service was rendered and the address and place or places where such service was rendered;
 - (iv) (iv) the nature of the security service rendered;
 - (v) (v) the duration of the security service in hours;

- (vi) whether a security officer was provided with a firearm or other weapon, and if so, the type of firearm or weapon, its proper identification number if any, as well as information on the legal authority in terms of which the firearm was provided and possessed; and
- (vii) particulars of ammunition provided to a security officer;
- (g) personnel files on each security officer, employee or official contemplated in paragraphs (a) and (b), containing at least:
 - (i) every written contract concluded with such person, as well as a description of the duties or functions of such person;
 - (ii) written particulars of employment as contemplated in section 13 of Sectoral Determination 6: Private Security Sector, South Africa, as published in Government Notice No. R 1250, Government Gazette No. 22873 dated 30 November 2001;
 - (iii) a record of all disciplinary steps, including suspension from duty, taken against such person by the security business;
 - (iv) a true copy of official documentation indicating the level of accredited security training and other relevant training of such person; and
 - (v) a record with information on the transfer from one branch or division to another, the promotion and termination of service of such person;
- (h) written contracts entered into with clients of the security business for the purposes of rendering a security service, as well as a list with the names, contact addresses and telephone numbers of all the clients with whom the security business has concluded contracts, whether orally or in writing, for the rendering of a security service, a description of the nature of the service contracted for, the contractual tariff in respect of the rendering of the service, as well as the place or places where the service is to be rendered;
- (i) a register concerning security officers contemplated in paragraph (b), indicating the name and street address of every security business or other person to whom such security officers or their services have been made available, the dates on which this occurred, the financial consideration payable in this regard and the persons responsible to pay any remuneration, reward or fee to the security officers in this regard;
- (j) legal authorization in the form prescribed by law in respect of the possession and use of firearms and other weapons by the security business and its security officers;
- (k) documentation indicating full particulars of all deductions and payments which are made to PSIRA in terms of the provisions contemplated in section 44(7) of the Act, or in terms of the Levies Act, as the case may be; and
- (l) all other records or documents which the security business must keep in terms of the Act or any other law applicable to a security business.

Regulation 10 (8) Any security business which contravenes or fails to comply with sub-regulation (2)(b), (3), (4)(b) or (4)(c) or fails or refuses to comply with a directive contemplated in sub-regulation (5), or any person contemplated in sub-regulation (6) who contravenes or fails to comply with sub-regulation (6), is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 24 months.

15. Uniforms, insignia, badges and firearms

Regulation 13. (1) Every security business must, subject to this regulation, provide every security officer in its employ with sufficient, distinctive articles of clothing constituting a standard uniform of that security business if the security officer is required to render a security service as contemplated in paragraphs (a), (c) or (d) of the definition of security service contained in section 1(1) of the Act, unless the security officer only renders a service consisting of the protection or safeguarding of a specific natural person.

Regulation 13 (2) Every security officer contemplated in sub-regulation (1) must wear the uniform provided to him or her when rendering such a security service.

Regulation 13 (3) The uniform contemplated in sub-regulation (1)

- (a) (a) must be suitable for use by the security officer in view of the nature of the security service rendered, the circumstances under which the security service is rendered and any other relevant circumstance; and
- (b) (b) must have at least 2 badges, prominently attached to the uniform, with the name of the security business employing the security officer clearly legible on them, as well as a badge, attached to the front top part of the uniform, with the name and registration number of the security officer clearly legible on it.

Regulation 13 (4) The director may, if there is a sound reason for such a step, direct a security business in writing to change any aspect regarding the uniform issued to its security officers to the extent and within such a reasonable time as may be indicated by the director.

Regulation 13 (5) A security business which renders a security service requiring the possession or use of a firearm, must lawfully provide a suitable firearm for that purpose and may not require or permit a security officer employed by the security business to obtain or provide a firearm for that purpose.

Regulation 13 (6) A security officer may, for the purpose of rendering a security service in the course of his or her employment, only possess a firearm lawfully provided by his or her employer.

Regulation 13 (7) Any security service provider who

- (a) contravenes or fails to comply with sub-regulation (1), (2) or (3), or fails or refuses to comply with a directive contemplated in sub-regulation (4);
- (b) without legal justification wears a uniform, badge or insignia identical to, or so closely resembling a uniform, badge or insignia of the South African Police Service, the South African National Defense Force, the Department of Correctional Services or of any other law enforcement agency or service established in terms of law, as to be calculated to deceive;

- (c) without legal justification provides another person with a uniform, badge or insignia contemplated in paragraph (b);
- (d) requires or permits a security officer employed or made available to that security service provider, to obtain or provide a firearm for the purpose of rendering a security service in the course of his or her employment;
- (e) requires a security officer employed or made available by that security service provider, or an applicant for a post as a security officer, to have a firearm license; or
- (f) is a security officer and who, for the purpose of rendering a security service in the course of his or her employment, is in possession of a firearm not lawfully provided by his or her employer,

is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 24 months.

Regulation 13 (8) This regulation comes into operation 120 days after promulgation of these regulations.

This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

STUDY UNIT 3

MONITORING AND INVESTIGATIONS

LEARNING OUTCOMES

On completion of this study unit the student will....



- Explain the duties of PSIRA inspectors in terms of the Act.
- Explain the purpose of the code of conduct for inspectors in terms of the Act.
- Explain the procedures of inspectors when a security service provider needs to be inspected.
- Explain the powers of inspectors in terms of the Act.
- Explain the penalties and offences applicable to inspectors in terms of the Act.

1. Appointment of inspectors

Section 31. (1) (a) Subject to the provisions of this Act, the Council must appoint inspectors as staff members of PSIRA in terms of this Act.

(b) The provisions of section 14 apply, with the necessary changes, to the appointment of such inspectors.

Section 31 (2) Any person appointed in terms of this section must perform functions in terms of this Act and any other law, subject to the direction and control of the director.

Section 31 (3) The director must furnish every inspector with a certificate in the prescribed form to the effect that he or she has been so appointed and is deemed by virtue of section 34(3) of this Act to be a peace officer.

Section 31 (4) An inspector must at the request of any interested person produce the certificate when performing a function in terms of this Act.

Section 31 (5) The Council, or the director if he or she has been authorized generally or specifically by the Council, may, if it is considered necessary in the circumstances to acquire special expertise or to augment the capacity of PSIRA temporarily, appoint any person, who is not in the full-time employment of PSIRA, as an inspector for a particular inspection or to assist an inspector with a particular inspection.

Section 31 (6) A person appointed in terms of subsection (5), for the purpose of an inspection, has the same powers and duties as an inspector contemplated in subsection (1) and the provisions of subsections (3) and (4) and section 14 apply, with the necessary changes, to such a person.

Section 31 (7) When performing any function in terms of this Act, an inspector may be accompanied by and utilize the services of an assistant, an interpreter or any member of the Service.

2. Code of conduct for inspectors

Section 32. (1) The Council must draw up a code of conduct for inspectors which is legally binding on all the inspectors employed by it.

Section 32 (2) The code of conduct must contain rules relating to compliance by inspectors with a set of minimum standards of conduct which is necessary to realize the objects of PSIRA.

Section 32 (3) The code of conduct must provide for penalties for a contravention of the code of conduct.

3. Inspection of security service providers

Section 33. (1) An inspector may, subject to any direction of the director, carry out an inspection of the affairs or any part of the affairs of a security service provider, of any other person who employs a security officer, or of a person whom the director has reason to believe is a security service provider or employs a security officer.

Section 33 (2) An inspector who carries out an inspection in terms of this section must, on completion of the inspection, compile a report of the inspection, provide a copy thereof to the relevant security service provider or other person contemplated in subsection (1) and submit the original to the director.

4. Powers of inspectors relating to security service providers

Section 34. (1) In order to carry out an inspection of the affairs of a security service provider or another person contemplated in section 33, an inspector may at any reasonable time:

- (a) without prior notice, enter any premises.
 - (i) occupied by or used in connection with the rendering of a security service by a security service provider or another person contemplated in section 33;
 - (ii) which the director has reason to believe are occupied by or used in connection with the rendering of a security service by a security service provider or another person contemplated in section 33; or
 - (iii) where or from where a security service is rendered or the director has reason to believe that such a service is rendered;
- (b) use any applicable equipment which has not been prohibited by the Council during such inspection and conduct such inspection, examination and investigation as may be necessary for the purpose of monitoring or enforcing compliance with this Act or the Levies Act;
- (c) use any computer system or equipment on the premises which is or appears to be utilized for the control or administration of the rendering of a security service, or require reasonable assistance from any person on the premises to use that computer system to:
 - (i) access any data contained in or available to that computer system relating to matters contemplated in paragraph (d);
 - (ii) reproduce any record from that data; and
 - (iii) seize, against the issue of a receipt, any output from that computer for examination and copying;
- (d) require from any person on the premises who is in control of the premises or appears to be performing managerial, supervisory, administrative or clerical functions relating to the rendering of a security service, at such a reasonable time and place as may be determined by the inspector:
 - (i) to disclose information, either orally or in writing, on any matter relating to the compliance with the provisions of this Act or the Levies Act, by the security service provider or other person contemplated in section 33, concerned;

- (ii) to produce to the inspector all or any records or documentation relating to the activities of the security service provider or other person contemplated in section 33, and pertaining to such a period as may be determined by the inspector, including but not limited to:
 - (aa) a list with the names and identity numbers of all security officers 2 and other employees of the security service provider or other person contemplated in section 33 concerned, as well as a list with the names and identity numbers of all persons who are officials of the security service provider or other person contemplated in section 33, but who are not its employees;
 - (bb) the wage register, payroll, pay-slips or other similar documentation in respect of such security officers, officials and employees;
 - (cc) time-sheets and attendance registers reflecting the hours of work of such security officers, officials and employees;
 - (dd) posting sheets indicating the places where such security officers 3 have been or are utilized in connection with a security service, the nature of such service, whether the security officers are in possession of any firearm or other weapon or have been provided with any firearm or other weapon by anyone and any legal authorization regarding such a firearm;
 - (ee) documentation indicating the level of security training of such security officers and officials;
 - (ff) personnel files of such security officers, officials and employees;
 - (gg) contracts entered into between the security service provider or other person contemplated in section 33, and such security officers, officials and employees;
 - (hh) documentation pertaining to deductions and payment of amounts by the security service provider or other person contemplated in section 33, to PSIRA; and
- (iii) documentation pertaining to any contract between the security service provider or other person contemplated in section 33, and a client;
- (e) search the premises for any records or documentary information contemplated in paragraph (d);
- (f) open any room, strongroom, safe, cabinet or other container which the inspector suspects contains any record or document relating to the affairs of the security service provider or other person contemplated in section 33, or cause it to be opened;
- (g) inspect or examine any record or document contemplated in paragraph (d), or other article or object on or in the premises used or which appears to be used in connection with the rendering of a security service by the security service provider or other person contemplated in section 33 concerned and request information about any such document, article or object from any person contemplated in paragraph (c);
- (h) make copies or extracts from any record or document contemplated in paragraph (d) or, against the issue of a receipt by the inspector, seize a record, document or object if the inspector has reason to believe that it can serve as evidence at any improper conduct proceedings or any other inquiry in terms of this Act.

Section 24 (2) Any person from whose possession any item contemplated in subsection (1) has been removed, or who otherwise to the satisfaction of the director or an inspector proves a right of ownership or possession in respect thereof, may during normal office hours be permitted by the director or inspector to investigate or examine the item in question, or extracts from any such record or document, under circumstances necessary to protect the integrity of the item in question.

Section 24 (3) (a) An inspector in respect of any provision of this or any other law applicable to security service providers is deemed to have been appointed as a peace officer by the Minister of Justice in terms of section 334 of the Criminal Procedure Act, 1977 (Act No 51 of 1977), for the national territory of the Republic, and for the purpose of exercising the powers contemplated in sections 40, 41, 44, 45, 46, 47, 48, 49 and 56 of the Criminal Procedure Act, 1977.

(b) An inspector may use the powers in terms of this subsection only to serve the purposes of this Act and matters incidental thereto.

Section 24 (4) A member of the Service or an inspector may demand the production of the registration and identification certificate contemplated in section 25, by any person purporting to be a security service provider.

Section 24 (5) Any member of the Service has all the powers conferred on an inspector in terms of this Act and the Levies Act.

5. Offences and penalties

Section 38. (1) Any person who:

- (a) falsely represents himself or herself to be an inspector; or
- (b) interferes with, resists, obstructs, hinders or delays an inspector, other person lawfully accompanying an inspector or a member of the Service in the performance of any function in terms of this Act or the Levies Act;

is guilty of an offence and liable on conviction to a fine or to imprisonment for a period not exceeding five years or to both a fine and such imprisonment.

Section 38 (2) Any security service provider or other person referred to in section 33, who:

- (a) refuses or fails to comply with any request of an inspector or member of the Service in terms of section 34;
- (b) without lawful excuse refuses or fails to answer a question put to him or her by an inspector or a member of the Service; or
- (c) makes any statement to an inspector or a member of the Service which is materially false or produces any document to an inspector or member of the Service which is false in any material respect, is guilty of an offence and liable on conviction to a fine or to imprisonment for a period not exceeding five years or to both a fine and such imprisonment.

Section 38 (3) Any person who:

- (a) contravenes or fails to comply with section 20(1) or section 26(3);
- (b) contravenes or fails to comply with section 26(6) or 37;
- (c) in any application, inquiry, improper conduct proceedings, appeal or other proceedings in terms of this Act or the Levies Act, willfully furnishes information or makes a statement which is false in any material respect;
- (d) fails to keep a prescribed record or document or fails to keep a prescribed record or document at premises as required in terms of this Act or the Levies Act;
- (e) advertises security services to be rendered by a person who is not registered in terms of this Act or whose registration is suspended in terms of this Act or the Levies Act;
- (f) holds himself or herself out as a registered security service provider whilst he or she is not registered or such registration is suspended;
- (g) knowingly or without the exercise of reasonable care contracts for the rendering of security services contrary to a provision of this Act or the Levies Act;
- (h) in any manner threatens, or commits an act which is calculated to obstruct or unduly influence a councilor or a staff member of PSIRA in the performance of his or her functions in terms of this Act or the Levies Act; or
- (i) commits an act which is calculated to hinder, impede or obstruct any investigation in terms of this Act or the Levies Act;

is guilty of an offence and:

- (i) on a first conviction of a contravention referred to in paragraph (a), is liable to a fine or to imprisonment for a period not exceeding five years, or to both a fine and such imprisonment;
- (ii) on a second or subsequent conviction of a contravention referred to in paragraph (a), is liable to a fine or to imprisonment for a period not exceeding ten years, or to both a fine and such imprisonment;
- (iii) on a conviction of a contravention referred to in paragraph (b), (c), (d), (e), (f), (g), (h), or (i), is liable to a fine or to imprisonment for a period not exceeding 24 months, or to both a fine and such imprisonment.

Section 38 (4) Any person who contravenes or fails to comply with any other provision of this Act or any provision of the Levies Act, is guilty of an offence and is liable on conviction to a fine or to imprisonment for a period not exceeding 24 months, or to both a fine and such imprisonment.

[illegible]

STUDY UNIT 4

PSIRA Statutory code of conduct

LEARNING OUTCOMES

On completion of this study unit the student will....



- ♦ Explain the security officers obligation towards PSIRA, clients general public and the private security industry
- ♦ Explain the purpose of the Code of Conduct published in terms of the PSIRA Act 56 of 2001.
- ♦ Know about the existence and implications of the Code of Conduct published in terms of the PSIRA Act 56 of 2001.
- ♦ Know under which conditions he would be convicted of improper conduct according to Regulation 2 of the Code of Conduct as published in terms of the PSIRA Act 56 of 2001.
- ♦ Explain the requirements that must be met by security businesses and security officers with regard to the carrying of firearms in terms of Regulation 13 (5) of the PSIRA Act 56 of 2001.

As PSIRA regulates the private security industry they provided the industry with a code of conduct. This document ensures that security officers and companies act within the statutory and ethical boundaries as set out in the PSIRA Code of Conduct. Security officers must understand and adhere to the code of conduct.

PURPOSE**1. Purpose, application and interpretation of the code**

The purpose of this Code is to provide binding rules that all security service providers and employers of in-house security officers must obey in order to –

- (a) promote, achieve and maintain a trustworthy and professional private security industry which acts in terms of the law applicable to the members of the industry;
- (b) promote, achieve and maintain compliance by security service providers with a set of minimum standards of conduct which is necessary to realize the objects of PSIRA;
- (c) promote, achieve and maintain compliance by security service providers with their obligations towards the State, PSIRA, consumers of security services, the public, and the private security industry in general;
- (d) ensure the payment of the applicable minimum wages and compliance with standards aimed at preventing exploitation or abuse of employees in the private security industry, including employees used to protect or safeguard merely the employer's own property or other interests, or persons or property on the premises of, or under the control of the employer; and
- (e) provide for matters incidental to the above.

2. Application of Code

This Code applies to:

- (a) all security service providers, whether registered with PSIRA or not, in practicing the occupation of security service provider, in rendering a security service or carrying on business in the rendering of a security service, or in performing any other act or function which is subject to the Act;
- (b) every person using his or her own employees to protect or safeguard merely his or her own property or other interests, or persons or property on his or her premises or under his or her control, to the extent provided for in the Act and this Code;
- (c) every category or class of persons as contemplated in the Act, taking into account the nature of the relevant provisions of this Code as well as the juristic nature of such persons; and
- (d) the relevant conduct of a security service provider at any place, irrespective of whether the conduct was committed within or outside the Republic.

3. General obligations towards PSIRA

1. A security service provider must, within his or her ability, render all reasonable assistance to and co-operate with PSIRA to enable PSIRA to perform any function which it may lawfully perform.
2. A security service provider may not perform any act which is calculated or likely to prevent PSIRA from performing a function which it may lawfully perform, or which is calculated or likely to cause or encourage disobedience or resistance to PSIRA or to any function which PSIRA may lawfully perform.
3. A security service provider must without undue delay furnish PSIRA with all information or documentation lawfully required by PSIRA from such a security service provider.
4. A security service provider must take all reasonable steps to ensure that any information provided to PSIRA by such security service provider is true and accurate.
5. A security service provider may not perform any act which is calculated to bring PSIRA into contempt or disrepute.
6. A security service provider must discharge all his or her financial obligations of whatever nature to PSIRA whenever an amount is due and payable, and, without derogating from the generality of the foregoing, may not tender or deliver a cheque to PSIRA that is not good for payment in respect of any amount owed to PSIRA by any person.
7. A security service provider may not use any person or body as a front or nominee, and no security service provider may allow himself or herself to be used as a front or nominee, in order to hinder, obstruct or weaken PSIRA in the performance of any of the functions of PSIRA, or which is calculated or likely to mislead PSIRA or cause harm to the interests of PSIRA, the State or any person.
8. A security service provider must be honest in all his or her dealings with PSIRA.
9. A security service provider must, without undue delay, provide PSIRA with all relevant information which is in his or her knowledge concerning the rendering of a security service by a security business which is not registered with PSIRA.
10. (a) A security business must keep full and proper financial records, available for inspection by PSIRA, for a period of at least 3 years from the date of any transaction, of all income and expenditure of the security business on account of the rendering of any security service by it.

(b) The provisions of regulation 10(2), (3), (4), (5) and (6) of the Private Security Industry Regulations, 2002 are, with the necessary changes, applicable to the obligation contemplated in paragraph (a).

4. General obligations towards the Security Services and organs of State

1. A security service provider must, within his or her ability, render all reasonable assistance and co-operation to the members and employees of the Security Services to enable them to perform any function which they may lawfully perform.
2. A security service provider may not interfere with, resist, obstruct, hinder or delay a member or an employee of a Security Service or an organ of State in the performance of a function which such person may lawfully perform.
3. A security service provider must, without undue delay, furnish all the information and documentation to a member or employee of a Security Service or an organ of State which such member or employee may lawfully require.
4. A security service provider may not unjustly cast reflection upon the honesty, professional reputation, skill, knowledge, service or qualifications of any member of the Security Services.
5. A security service provider must be honest in all his or her dealings with a Security Service and with any organ of State.
6. A security service provider may not, whether directly or indirectly, request or use a member or former member of a Security Service or any employee or former employee of a Security Service or an organ of State, to obtain any information, document, object or assistance for the purposes of rendering a security service, where such member, former member, employee or former employee, will contravene a law or the conditions of his or her service, as the case may be, in providing such information, document, object or assistance.
7. A security service provider must, where the importance, nature or circumstances of a security service, or the nature or extent of the risks guarded against, or any other relevant fact, reasonably requires such a step, officially provide a responsible member of the Service with all relevant information regarding the rendering or proposed rendering of the security service, and maintain contact with such a member if this is reasonable and prudent in the circumstances or if so requested by such member.

5. General obligations towards the public and the private security industry

- (1) A security service provider must at all times act in a manner which -
 - (a) does not threaten or harm the public or national interest;
 - (b) promotes the stability of the private security industry;
 - (c) promotes good discipline in the private security industry;
 - (d) maintains and promotes the status of the occupation of security service provider; and
 - (e) promotes efficiency in and responsibility with regard to the rendering of security services.

-
- (2) A security service provider may not infringe any right of a person as provided for in the Bill of Rights and, without derogating from the generality of the foregoing-
- (a) may not unfairly discriminate directly or indirectly against any person or unfairly deny any person equal service, employment or employment benefits on one or more grounds, including race, gender, sex, pregnancy, marital status, ethnic or social origin, colour, sexual orientation, age, disability, religion, conscience, belief, culture, language and birth; and
- (b) may not break open or enter premises, conduct a search, seize property, arrest, detain, restrain, interrogate, delay, threaten, injure or cause the death of any person, demand information or documentation from any person, or infringe the privacy of the communications of any person, unless such conduct is reasonably necessary in the circumstances and is permitted in terms of law.
- (3) Every security service provider must endeavour to prevent crime, effectively protect persons and property and refrain from conducting himself or herself in a manner which will or may in any manner whatsoever further or encourage the commission of an offence or which may unlawfully endanger the safety or security of any person or property.
- (4) A security service provider may only use force when the use of force as well as the nature and extent thereof is reasonably necessary in the circumstances and is permitted in terms of law.
- (5) A security service provider may not hold himself or herself or any other security service provider out to any person as having any authority, power, status, capacity, level of training, accreditation, registration, qualification or experience which he or she or the other security service provider does not have.
- (6) A security service provider may only possess or carry a firearm, ammunition or a weapon, or possess or use any equipment, if such conduct is lawful.
- (7) A security service provider may only use a firearm in circumstances and in a manner permitted by law.
- (8) A security service provider may not act in any manner that threatens or poses an unreasonable risk to the public order or safety.
- (9) A security service provider must, when performing functions in a public place, do so with due regard to the safety, security and other rights of the members of the public who are present in such a place.
- (10) A security service provider may not through the medium of any other person or body, or by using such person or body as a front or nominee, do or attempt to do or achieve anything, which would not be permissible for him or her to do or to achieve, and no security service provider may allow himself or herself to be used as a front or nominee for such a purpose.

-
- (11) A security service provider must in practicing this occupation, rendering a security service or carrying on business in the rendering of a security service, or when he or she is undergoing security training or assessment of security training, knowledge or skill, always act in an honest and trustworthy manner.
- (12) A security service provider rendering a security service -
- (a) must treat members of the public with whom he or she comes into contact with the respect and courtesy that is reasonable in the circumstances;
 - (b) may not incite, encourage or help any person to use force unlawfully or commit any unlawful act; and
 - (c) may not use abusive language or language which may be reasonably construed as the advocacy of hatred or contempt that is based on race, colour, ethnicity, sex, religion, language or belief.
- (13) A security service provider may not use or be under the influence of alcohol or a narcotic drug while rendering a security service.
- (14) Without derogating from any provision in this regulation, a security service provider may not intentionally commit a delict against any person while rendering a security service.
- (15) A security service provider may not unjustly cast reflection upon the honesty, professional reputation, skill, knowledge, quality of service, background or qualifications of any other security service provider, and, without derogating from the generality of the foregoing, may not intentionally or negligently disseminate false information concerning another security service provider or lay a false charge or make a false complaint against or concerning another security service provider.
- (16) A security service provider may not-
- (a) in any unlawful manner infringe the goodwill of another security service provider, and, without derogating from the generality of the foregoing, may not make false statements regarding a security service provider, instigate a boycott against a security service provider, or unlawfully exercise physical or psychological pressure on clients, employees or suppliers of a security service provider;
 - (b) engage in an act of unlawful competition in competing with another security service provider, and, without derogating from the generality of the foregoing, may not mislead the public, copy the distinguishing signs or misappropriate the performance of another security service provider, exploit the reputation of another security service provider, unduly influence the public with regard to his or her own services, bribe an employee or agent of a client or potential client of another security service provider, obtain or use the trade secrets or confidential business information of another security service provider or compete with another security service provider in breach of a statutory or contractual obligation;

- (c) interfere with, hinder or obstruct another security service provider or his or her personnel in the rendering of a security service or the administration of his or her business affairs; or
- (d) interfere with or tamper with the equipment, firearms, ammunition, or weapons used by another security service provider in the rendering of a security service, or intercept or interfere with the communications of another security service provider.

6. General obligations towards clients, and issues related thereto

- (1) A security service provider may not use any misrepresentation, duress, unreasonable pressure or undue influence, or unfairly or unreasonably exploit or misuse the circumstances of any client, or use any method or act prohibited in terms of legislation or common law dealing with corruption, when communicating, negotiating or contracting with a client.
- (2) A security service provider must, whenever a client reasonably needs information to make an informed decision or to exercise or protect a right or comply with a duty, furnish sufficient and correct information which is or should reasonably be within the knowledge of the security service provider, to the client, including such information concerning the following:
 - (a) the risks to which the client is exposed and the client's needs in respect of a particular security service;
 - (b) the client's needs in respect of the use of equipment, firearms and weapons in the rendering of a security service to the client;
 - (c) the security service that he, she or any other security service provider that will be used to render the security service, is entitled, able and qualified to render;
 - (d) the correct and full remuneration, reward, fee or benefit payable by the client in respect of the relevant security service;
 - (e) the registration status as security service provider, training level and relevant conditions of service of the security officers used or to be used in rendering the security service;
 - (f) the management, control and supervision of the rendering of the security service as well as reasonable contact particulars of security officers performing such functions;
 - (g) the procedures, firearms, ammunition, weapons and equipment used or to be used by security officers in the rendering of the security service;
 - (h) any contractor or sub-contractor used or to be used in connection with the rendering of the security service, as well as the control and supervision of such contractor or sub-contractor;

- (i) any matter on which the security service provider is by law obliged to furnish information to the client; and
 - (j) any matter on which the client lawfully and reasonably requests information.
- (3) A security service provider may not-
- (a) make a contractual offer, conclude a contract or make himself or herself available for the rendering of a security service or the performance of any function, that requires a legal power, license, permit, authorization, accreditation, level of training, skill, knowledge, qualification, registration, security officers, firearm, ammunition, weapon, equipment, infrastructure, capacity or premises, which he or she does not have or is not likely to have when he or she has to commence rendering such a service or perform such a function;
 - (b) render or purport to render a security service or perform any function that requires a legal power, license, permit, authorization, accreditation, level of training, skill, knowledge, qualification, registration, security officers, firearm, ammunition, weapon, equipment, infrastructure, capacity or premises, which he or she does not have;
 - (c) submit tender documentation for the rendering of a security service to any person or body that contains any materially false or misleading information, or that omits any information of a material nature;
 - (d) make a contractual offer to or conclude a contract with a client containing any term, condition or provision that-
 - (i) excludes, limits or purports to exclude or limit the legal liability of the security service provider towards the client in respect of any malicious, intentional, fraudulent, reckless or grossly negligent act of the security service provider, his or her security officers or other personnel, or any other person used by the security service provider or recommended by him or her to the client;
 - (ii) places a duty or purports to place a duty on the client to indemnify or compensate the security service provider or any other person in respect of any act referred to in sub-paragraph (i) by a person for whose conduct the client is not independently responsible in law;
 - (e) make a contractual offer to or conclude a contract with a client containing any term, condition or provision that excludes or limits or purports to exclude or limit any duty on the security service provider in terms of the Act or this Code or any right which a client has in terms of the Act or this Code, or which constitutes or purports to constitute a waiver of any such right by the client; or
 - (f) make a contractual offer to or conclude a contract with a client containing any term, condition or provision that is prohibited in terms of any legislation dealing with unfair or unconscionable contractual provisions.

-
- (4) A security service provider must ensure, at his or her own cost, that the full contractual agreement with the client in respect of the rendering of a security service is reduced to writing and signed by or on behalf of the security service provider and that a true copy thereof is provided to the client without undue delay.
- (5) A security service provider-
- (a) must render the security service for which he or she has bound himself or herself contractually in accordance with the terms and conditions of the contract, the Act and this Code;
 - (b) must render the security service for which he or she has bound himself or herself contractually, and perform any related function or work, with such a degree of skill, diligence and care as may be expected of a reasonable, competent and qualified security service provider in the circumstances; and
 - (c) may not demand a larger performance from a client for the rendering of a security service than that which is legally owed by the client, or receive such a performance, unless the client voluntarily decides to render an additional performance.
- (7) A security service provider must without undue delay furnish a client who has paid any amount for the rendering of a security service with a correct and full receipt, or similar adequate written or electronic proof, in respect of such payment.
- (8) A security service provider must protect the rights and legally recognized interests of a client in a reasonable manner, in accordance with all applicable law and with due regard to the rights and legally recognized interests of all other parties concerned.
- (9) A security service provider may not in rendering a security service make any person available or use or permit the use of any firearm, ammunition, weapon or equipment if this exposes the client or any other person to any unlawful harm, or the unreasonable risk of unlawful harm, of which the security service provider is aware or should reasonably be aware.
- (10) A security service provider may not-
- (a) use or make any person available for the rendering of a security service, whether directly or indirectly, unless such a person -
 - (i) is registered as a security service provider in terms of the Act and may render the relevant security service in terms of the Act; and
 - (ii) has successfully completed the security training required in terms of law in respect of the rendering of the relevant security service;
 - (b) use another security service provider than the one provided for in the contract with the client to render the security service or part thereof to a client, unless:

- (i) the client has given consent thereto; and
 - (ii) such security service provider is registered with PSIRA and is entitled, able and equipped, and has the infrastructure and capacity, to render the security service in question.
- (11) A security service provider may not, where a conflict of interests of the security service provider and the client, or a conflict of interests of different clients of the security service provider, exists, arises or is reasonably foreseeable in the rendering of a security service, act or continue to act without prior full disclosure to and the consent of the interested parties.
- (12) A security service provider may not in any manner whatsoever disclose confidential information concerning a client, including information relevant to the security, safety or protection of a client or of his or her legally recognized interests, that has come to his or her knowledge on account of the rendering or negotiating the rendering of a security service to such client, without having obtained prior consent for the disclosure, unless the security service provider is legally obliged to disclose the information or the disclosure is made in circumstances in which it is not reasonably possible to obtain the client's consent and the disclosure is made in the interests of the client.
- (13) A security service provider may not in any manner whatsoever, without the written consent of a client, use confidential information concerning the client that has come to his or her knowledge on account of the rendering or negotiating the rendering of a security service:
- (a) to obtain or retain an unfair financial benefit at the expense of the client; or
 - (b) to unfairly compete with the client in business.
- (14) A security service provider must take all reasonably necessary steps to protect and safeguard any confidential information concerning a client, including information relevant to the security, safety or protection of the client or of his or her legally recognized interests, that has come to his or her knowledge on account of the rendering or negotiating the rendering of a security service to such client.
- (15) A security service provider may not -
- (a) without a legal ground justifying such conduct, use, alienate, hand over, be in possession of, or retain any property of a client, or be or remain on the premises or any part thereof of a client; or
 - (b) intentionally or through gross negligence damage or lose any property of a client.
- (16) Without derogating from any provision in this regulation, a security service provider may not commit a delict against his or her client in the rendering of a security service to the client or in any act related to the rendering of a security service.

7. Provisions regarding certain categories and classes of security service providers and different types of security services.**7.1 Employers**

- (1) A security service provider employing any person in the private security industry must comply with every obligation imposed by law towards or in respect of such employee, and, without derogating from the generality of the foregoing:
 - (a) may not abuse or exploit the employee;
 - (b) must ensure that the employee receives the full wages and all other service benefits due to him or her as provided for in terms of any applicable legal provision, agreement, contract or determination;
 - (c) must comply with all obligations imposed by law on employers to ensure that their employees qualify for or receive any social security benefits or other financial benefits provided for in terms of law;
 - (d) must comply with all obligations imposed by law on employers aimed at the training and skills development of such an employee; and
 - (e) must comply with all obligations imposed by law on employers relating to the deduction of annual amounts as contemplated in section 43 of the Act, or levies as contemplated in section 4(2)(b) of the Levies Act, from the employee's wages, remuneration or reward, as well as the payment thereof to PSIRA.
- (2) A security service provider must, before employing any person as a security officer, take all reasonable steps to verify the registration status as security service provider, level of training, qualifications and all other relevant facts concerning such a person.
- (3) A security service provider may not directly or indirectly order, allow or use a security officer in his or her employ to render a security service which requires a legal power, status, license, permit, authorization, accreditation, registration, level of training, skill, knowledge or qualification that the security officer does not have.
- (4) A security service provider may not directly or indirectly order or allow a security officer in his or her employ to possess or use a firearm, ammunition, weapon or any equipment, unless such possession and use is lawful and the security officer has been successfully trained as required by law in the possession and use thereof and is able to use it lawfully, safely and correctly in the relevant circumstances.
- (5) A security service provider must take reasonable steps to ensure that a security officer in his or her employ who is used or made available to render a security service to any person -
 - (a) has been properly informed about the nature and scope of his or her functions and duties as well as his or her legal powers in this regard;

- (b) is properly managed, controlled and supervised;
- (6) A security service provider must, at his or her own cost, provide all assistance reasonably necessary and possible to security officers in his or her employ to ensure the receipt by them of all relevant information from PSIRA regarding any matter relevant to the regulation of the private security industry, including their financial obligations towards PSIRA and the renewal of registration as security service provider as contemplated in the Act.
- (7) A security service provider must, at his or her own cost and as often as it is reasonable and necessary, but at least once a year, provide training or cause such training to be provided, to all the security officers in his or her employ to enable them to have a sufficient understanding of the essence of the applicable legal provisions regarding the regulation of the private security industry and the principles contained in this Code.
- (8) (a) A security service provider must draw up, or caused to be drawn up, and properly and consistently enforce a disciplinary code in respect of all security officers in his or her employ.
- (b) The disciplinary code contemplated in paragraph (a) must contain rules which adequately reflect the relevant values and principles contained in this Code as well as any further rules that are reasonably necessary to ensure disciplined, honest, safe, reasonable, professional and competent conduct by security officers in the circumstances in which they are employed and made available by the security service provider for the rendering of one or more security services.
- (c) The obligation contemplated in paragraph (a) comes into operation 30 days after promulgation of these regulations.
- (9) A security service provider must, without undue delay, officially provide a responsible member of the Service with all relevant information which is in his or her knowledge concerning the commission or alleged commission of any offence specified in the Schedule of the Act by a security officer in his or her employ.

7.2 Persons occupying certain offices or positions

A security service provider who is a director, member, partner, trustee, administrator or a person in control of any security business, as the case may be, and any person performing executive or managing functions in respect of a security business, must at all times while he or she is occupying such office or having such position, take all reasonably practicable steps within his or her powers and capacity to ensure that the security business complies with the provisions of the Act, the Levies Act and this Code.

7.3 Management, control and supervision

- (1) A security business must ensure that its business affairs, the rendering of a security service by it, the security officers used or made available by it and its compliance with obligations in terms of the Act, the Levies Act and this Code, are properly managed, controlled, supervised and administered by appropriately trained, experienced or skilled persons.
- (2) Without derogating from the generality of sub-regulation (1), a security business must implement systems and practices of management, control, supervision and administration that are reasonably necessary in view of the nature and size of the security business, the number of security officers used or made available and the nature and scope of the security services rendered, to ensure-
 - (a) effective control over the rendering of security services by the security business;
 - (b) lawful, trustworthy, disciplined and competent conduct by security officers used or made available by the security business; and
 - (c) compliance with the obligations of the security business in terms of the Act, the Levies Act and this Code.

7.4 Security service providers making security officers available to others.

- (1) A security service provider who makes a security officer or the services or the assistance of a security officer available to any other security service provider with a view to the rendering of a security service to a third party, is bound by all the provisions of this Code that are applicable to security service providers generally as well as to employers specifically as contemplated in regulation 11 of this Code, with the necessary changes.
- (2) Without derogating from the generality of sub-regulation (1), a security service provider contemplated in sub-regulation (1) must ensure that a security officer who, or whose services or assistance, is thus made available by him or her, receives the full wages and all other service benefits due to the security officer as provided in terms of the applicable law.
- (3) A security service provider who makes a security officer or the services or the assistance of a security officer available to any other security service provider as contemplated in sub-regulation (1), may only do so if such security service provider is registered with PSIRA and is otherwise entitled to render the security service in respect of which the security officers are made available.

7.5 Private investigators

A security service provider performing the functions of a private investigator-

- (a) may not perform any act which interferes with, hinders or obstructs a Security Service or an organ of State in performing any function that it may lawfully perform, or advise or agree with a client to perform such an act;
- (b) may not advise, assist or incite a client or any other person to commit an offence, a delict, breach of contract or any other type of unlawful act;
- (c) may not undertake or assist in the entrapment of any person for the purposes of obtaining evidence of an offence, a delict or breach of contract unless such conduct is permitted in terms of law and any official permission that may be legally required, has been obtained;
- (d) may not conceal facts regarding the commission of an offence from a Security Service or any organ of State, or agree with a client to conceal such facts from a Security Service or any organ of State;
- (e) may not employ a corrupt, illegal or unlawful method or technique, or use unlawful threats, intimidation, misrepresentation or false pretences, to gather information, gain access to premises or secure the assistance or co-operation of any person;
- (f) may not possess or use a monitoring device or any other equipment for the purposes of surveillance, counter-surveillance or any other aspect of an investigation where such possession or use is in conflict with any legal provision or any provision of this Code or constitutes an unlawful act against any person;
- (g) may not possess or use a specialised device used for the opening, closing or engaging of locking mechanisms, or possess or use any specialised device used to reproduce or duplicate keys, or possess any key code or key, unless he or she is able to provide a justifiable reason to PSIRA or the Service, as the case may be, for such possession or use;
- (h) may not possess, carry or use any document or object for the purposes of providing a false or incorrect indication of his or her identity, status, powers or functions, unless he or she is able to demonstrate to PSIRA or the Service, as the case may be, that such conduct-
 - (i) is essential for the purposes of conducting a lawful investigation which has been properly mandated by a client; and
 - (ii) is not in conflict with any legal provision and does not constitute an unlawful act against any person

- (i) may not falsify, distort, manufacture, destroy or unlawfully interfere with any evidence of an offence, delict, breach of contract or any other legally relevant fact;
- (j) may not request or obtain information, assistance or co-operation from any person in circumstances where such person contravenes or would contravene the law, the conditions of his or her service, a binding code of ethics, acts in breach of trust or a contractual obligation, or infringes a person's right to privacy, in providing such information, assistance or co-operation;
- (k) may not promise, offer or give any consideration to a person in order to obtain information, assistance or co-operation from such person in circumstances where the person contravenes the law, the conditions of his or her service, a binding code of ethics or acts in breach of trust or a contractual obligation in agreeing to or accepting such offer or consideration;
- (l) may only undertake an investigation on behalf of a client in terms of a proper mandate reduced to writing and signed by or on behalf of the client containing at least the name and address of the private investigator, the name and address of the client, a description of the subject matter of the investigation, the date of the mandate, the remuneration, reward, fee or benefit in respect of the investigation, and details of any prepayment to be made by the client;
- (m) must keep the mandate contemplated in paragraph (l) for a period of at least three years in a secure place;
- (n) may not demand from a client any amount or performance which is not in accordance with the amount contemplated in paragraph (l), or otherwise legally due to him or her;
- (o) may not demand, receive or retain any payment, performance or property which is not due and payable from a client or any other person, or which serves as remuneration in respect of any act by the private investigator that is prohibited in terms of this Code;
- (p) may not provide false or misleading information to a client regarding an investigation mandated by the client, including information relating to the cost of such investigation or any part thereof, the time spent on the investigation and the methods used or to be used for the purposes of the investigation; and
- (q) must provide a client without undue delay with a written and signed report regarding any investigation mandated by the client, if so requested by the client and if there is no legal ground on which the client's request may be denied.

7.6 Locksmiths

A security service provider performing the functions of a locksmith –

- (a) must perform all his or her functions in a trustworthy and competent manner;
- (b) must take all reasonable steps necessary to eliminate or minimize any risk of harm to a client as a result of any service rendered by him or her to the client;
- (c) may only open, close or engage a locking mechanism of any nature, or reproduce, duplicate, manufacture or provide a key, start any vehicle or cause a vehicle to be capable of movement by unlocking a locking mechanism, if the person requesting such action furnishes written proof of his or her identity with sufficient contact particulars as well as PSIRA to make the request, and, if relevant in the circumstances, the consent of any other person required by law in respect of the requested action, has been furnished;
- (d) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the proof and information contemplated in paragraph (c);
- (e) must keep a proper record of the information contemplated in paragraph (c) for a period of at least three years in a secure place;
- (f) may not perform any act, unless duly authorized thereto, that compromises or may probably compromise the security of a client or of any other person, including an act which affects the security and efficiency of any locking mechanism, key, vehicle, door, gate or security system;
- (g) may not duplicate, reproduce, manufacture or possess any key or key code, or modify a key blank, unless this is done for lawful purposes;
- (h) must exercise effective and reasonable control over a specialized device, belonging to or utilized by him or her, which is used to open, close or engage locking mechanisms;
- (i) must exercise effective and reasonable control over a specialized device, belonging to or utilized by him or her, to reproduce or duplicate keys;
- (j) may only provide a key code, ready cut keys or a specialized device contemplated in paragraph (h) and (i), belonging to or utilized by him or her, to a person who is entitled to receive and possess it in terms of a ground recognized by law;
- (k) may only provide information or training or impart skills regarding the opening, closing or engaging of locking mechanisms of any nature to a person that is registered as a security service provider, enrolled to receive training at a security training establishment, or entitled to receive such information, training or skills in terms of some other ground recognized by law; and
- (l) must acquire any key or key code, or any specialised device contemplated in paragraph (h) and (i), in a lawful manner

7.7 Security consultants and advisers

A security service provider giving advice on the protection or safeguarding of a person or property, any other type of security service, or on the use of security equipment -

- (a) must provide a client with sound, honest and objective advice which is in the best interests of the client;
- (b) must timeously disclose to a client any direct or indirect benefit of whatever nature that he or she or any business in which he or she has any direct or indirect interest may obtain if the client acts upon the advice provided by the security service provider;
- (c) must comply, with the necessary changes, with the provisions of regulation 15(a), (b), (d), (e), (f), (g), (h), (i), (j), (k), (l), (m), (o), (p) and (q);
- (d) may not advise a client to use any corrupt, unlawful or illegal method, system or practice;
- (e) may not advise a client to use or obtain the services of a security service provider who is not registered with PSIRA, trained up to the level required by law and otherwise entitled by law to render the security service in question;
- (f) may not advise a client to use or obtain the services of any person who is untrustworthy or incompetent; and
- (g) may not advise a client to obtain, use or provide any equipment, firearm, ammunition or weapon, or implement any system, which is faulty or has a defect that may render it an inherent source of danger to any person.

7.8 Security service providers ensuring order and safety on premises used for sporting, recreational, entertainment or similar purposes

A security service provider who has contracted to render a service aimed at ensuring order and safety on premises used for sporting, recreational, entertainment or similar purposes, whether on his or her own or in conjunction with any other person, and any security officer used to render such a service, must act in accordance with all the obligations imposed by the Act and all other applicable legal provisions.

7.9 Security service providers providing security training

A security service provider providing security training –

- (a) must provide security training which is of a high quality;
- (b) must employ training methods and materials which are the most suitable in the circumstances in order to promote and achieve the officially approved outcomes in respect of the security training;

- (c) may only provide security training in terms of his or her own qualifications and official accreditation or authorization, and must comply with every condition attached to such accreditation or authorization;
- (d) must provide security training in accordance with all legal provisions applicable to such training;
- (e) must provide security training in accordance with any relevant and officially approved or accredited syllabus, program, standards and training material;
- (f) must, when assessing or testing the knowledge, insight or skills of any person undergoing security training, or the outcomes of such training, use the applicable officially approved methods and procedures, act in an objective manner without showing any prejudice or favour, and may not employ any method or practice that would distort the actual knowledge, insight or skills of the person undergoing the assessment or testing; and
- (g) must take reasonable steps to ensure that the security training in question is only provided to a person entitled in terms of the Act to undergo such training.

7.10 Security service providers installing, servicing or repairing security equipment or performing certain functions regarding monitoring devices

A security service provider installing, servicing or repairing security equipment

- (a) must perform all his or her functions in a reasonable, trustworthy and competent manner;
- (b) may not install, service or repair any security equipment if the client's possession or use thereof, is or will be unlawful;
- (c) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the lawfulness of a client's possession and use of security equipment as contemplated in paragraph (b);
- (d) may not install, service, repair or modify any security equipment if he or she would act unlawfully in doing so;
- (e) may only install security equipment if it has been acquired in a lawful manner by him or her or by the client, as the case may be;
- (f) may not install security equipment if he or she knows or should reasonably know that it is faulty, untrustworthy or defective, or that it poses an unreasonable risk to the legitimate interests of the client or any other person;
- (g) must, when he or she installs security equipment, provide the client with all information reasonably necessary in regard to the care of and the effective use of the security equipment, unless the client is already in possession of such information;

- (h) must take all reasonable steps necessary in the circumstances to eliminate or minimize any risk of harm to a client as a result of the service rendered by him or her;
- (i) may not perform any act, unless duly authorized thereto, that compromises or may probably compromise the security of a client or any other person entitled to security;
- (j) may only provide information or training or impart skills concerning the operation, installation, repair or servicing of security equipment to a person who is registered as a security service provider, enrolled to receive training at a security training establishment, or is otherwise entitled to have access to such information, training or skills;
- (k) may not make a misrepresentation to a client regarding any security equipment provided to the client by him or her; and
- (l) must without undue delay officially report to the Service the unlawful possession or use of security equipment by any person that he or she is aware of :

A security service provider manufacturing, importing, distributing, advertising, possessing or using a monitoring device:

- (a) may only manufacture, import, distribute, advertise, possess or use a monitoring device in compliance with all applicable legal provisions;
- (b) must keep proper records as may be prescribed in terms of the Act;
- (c) must submit information to PSIRA on all transactions regarding monitoring devices as may be prescribed in terms of the Act;
- (d) may not supply a monitoring device to any person if the identity and sufficient contact particulars of such person as well as the identity and sufficient contact particulars of the end user thereof are not confirmed in writing to him or her before he or she supplies such a monitoring device;
- (e) may not supply a monitoring device to any person if such person's possession or use thereof and the possession or use thereof by the end user, is or will be unlawful
- (f) must make reasonable enquiries, if reasonably necessary in the circumstances, to verify the lawfulness of a person's possession and use of a monitoring device as contemplated in paragraph (e), as well as the accuracy of any relevant information provided by the client to him or her; and
- (g) must comply, with the necessary changes, with the provisions of regulation 15(a), (b), (c), (d), (e), (f), (g), (h), (i), (j) and (k), and regulation 17(d) and (e).

8. Obligations on employers of in-house security officers**8.1 General obligations**

An employer of in-house security officers-

- (a) must comply with the Act and with all other legal provisions and obligations, whether they are based on or form part of common law or statutory law, that are applicable or relevant to the employment and use of in-house security officers as contemplated in section 28(2) of the Act, or for any other function that is subject to the Act;
 - (b) is, in addition to any other provision of this Code which is on account of its wording applicable to him or her, subject to regulations 6, 7, 8, 11, 12 and 13, to the extent that they are applicable, with the necessary changes.
- (2) The general obligations contemplated in this regulation do not derogate from the specific obligations contained in this chapter.

8.2 Specific obligations

An employer of in-house security officers-

- (a) may only use, permit or direct an employee to protect or safeguard merely his or her own property or other interests, or persons or property on his or her premises or under his or her control, or to perform any other function that is subject to the Act, if such employee is registered as a security service provider in terms of the Act, has successfully completed the security training required by law relevant to this function, and is otherwise entitled by law to perform the function in question;
- (b) must, before using, permitting or directing an employee to render a security service contemplated in paragraph (a), take all reasonable steps necessary to verify the registration status as security service provider, level of training, qualifications and any other relevant facts concerning such employee;
- (c) must appoint and use, subject to paragraph (a), a responsible person to manage, supervise and control all employees used, permitted or directed to render a security service as contemplated in paragraph (a);
- (d) must appoint and use a responsible person to ensure that the obligations of the employer of in-house security officers towards PSIRA are discharged in terms of law;
- (e) may not, whether for reward or not, except to the extent allowed in section 28(2) of the Act, make any employee or his or her services available for the purposes of rendering a security service to any other person;

- (f) must, in respect of all employees used, permitted or directed to render a security service as contemplated in paragraph (a), comply with the relevant provisions of the Levies Act as well as all applicable laws and measures promulgated in terms of law regarding minimum wages and standards aimed at preventing exploitation or abuse of employees in the private security industry; and
- (g) must take all reasonable steps to ensure that the employer of in-house security officers does not act as a security service provider, and that the impression is not created that the employer of in-house security officers is, or acts, as a security service provider.

9. Provisions regarding improper conduct, the enforcement of the code and other matters relating thereto,

9.1 Improper conduct by a security service provider

A security service provider who-

- (a) contravenes or fails to comply with a provision of the Act;
- (b) commits an offence contemplated in the Schedule to the Act;
- (c) contravenes or fails to comply with a provision of the Levies Act; or
- (d) contravenes or fails to comply with a provision of this Code,

is guilty of improper conduct and on conviction liable to any penalty contemplated in regulation 25.

- (2) Any conspiracy, incitement or attempt to commit any act contemplated in sub-regulation (1)(a), (c) or (d) constitutes improper conduct as contemplated in sub-regulation (1).
- (3) The intentional provision of assistance by a security service provider to another security service provider to commit any act referred to in sub-regulation (1)(a), (c) or (d) constitutes improper conduct as contemplated in sub-regulation (1).
- (4) Every contravention or failure to comply as contemplated in sub-regulation (1), (2) or (3), constitutes a separate count of improper conduct in respect of which any penalty contemplated in regulation 25 may be imposed.

9.2 Penalties in respect of improper conduct by a security service provider

A security service provider who has been found guilty of improper conduct in terms of the procedures contemplated in regulation 29, is subject to the following penalties:

- (a) a warning or a reprimand;

- (b) suspension of registration as security service provider for a period not exceeding 6 months;
 - (c) withdrawal of registration as security service provider;
 - (d) a fine not exceeding R10 000, which is payable to PSIRA;
 - (e) publication of appropriate details of the conviction of improper conduct and any penalty imposed; or
 - (f) any combination of the above.
- (2) The penalty contemplated in sub-regulation (1)(b), (c) or (d) may be suspended on any condition that is reasonably likely to promote compliance with this Code by the security service provider.
- (3) In addition to any other relevant fact, the following must be considered and properly taken into account in imposing any penalty contemplated in this regulation-
- (a) the gravity and nature of the improper conduct;
 - (b) the known relevant circumstances of the security service provider, and such other relevant circumstances as the security service provider may prove to exist;
 - (c) the national interest as well as the interest of the public and of the private security industry;
 - (d) the risk posed by the improper conduct to the rights or legitimate interests of any person;
 - (e) any previous conviction of the security service provider of improper conduct in terms of this Code or the repealed code of conduct;
 - (f) the financial or other benefit or likely benefit obtained or that may be obtained by the security service provider through the commission of improper conduct; and
 - (g) any actual or potential harm caused by the security service provider through the commission of improper conduct.

9.3 Improper conduct by an employer of in-house security officers

- (1) An employer of in-house security officers who –
 - (a) contravenes or fails to comply with a provision of the Act;
 - (b) contravenes or fails to comply with a provision of the Levies Act; or
 - (c) contravenes or fails to comply with a provision of this Code,

is guilty of improper conduct and on conviction liable to any penalty contemplated in regulation 27

- (2) Any conspiracy, incitement or attempt to commit any act contemplated in sub-regulation (1)(a), (b) or (c) constitutes improper conduct as contemplated in sub-regulation (1).
- (3) Every contravention or failure to comply as contemplated in sub-regulation (1), or (2) constitutes a separate count of improper conduct in respect of which any penalty contemplated in regulation 27 may be imposed.

9.4 Penalties in respect of improper conduct by an employer of in-house security officers

- (1) An employer of in-house security officers who has been found guilty of improper conduct in terms of the procedures contemplated in regulation 29, is subject to the following penalties:
 - (a) a warning or a reprimand;
 - (b) a fine not exceeding R10 000, which is payable to PSIRA;
 - (c) publication of appropriate details of the conviction of improper conduct and any penalty imposed; or
 - (d) any combination of the above.
- (2) The penalty contemplated in sub-regulation (1)(b), (c) or (d) may be suspended on any condition that is reasonably likely to promote compliance with this Code by the employer of in-house security officers.
- (3) In addition to any other relevant fact, the following must be considered and properly taken into account in imposing any penalty contemplated in this regulation-
 - (a) the gravity and nature of the improper conduct;
 - (b) the known relevant circumstances of the employer of in-house security officers, and such other relevant circumstances as the employer of in-house security officers may prove to exist;

- (c) the national interest as well as the interest of the public;
- (d) the risk posed by the improper conduct to the rights or legitimate interests of any person;
- (e) any previous conviction of the employer of in-house security officers of improper conduct in terms of this Code;
- (f) the financial or other benefit or likely benefit obtained or that may be obtained by the employer of in-house security officers through the commission of improper conduct; and
- (g) any actual or potential harm caused by the employer of in-house security officers through the commission of improper conduct.

9.5 Improper conduct also a criminal offence

Any person who commits improper conduct in terms of this Code, is guilty of an offence and on conviction liable to a fine or to imprisonment for a period not exceeding 24 months, or to both a fine and such imprisonment.

9.6 Procedures

- (1) The procedures for the enforcement of this Code by PSIRA are contained in the Improper Conduct Enquiries Regulations.
- (2) The procedures contained in the Improper Conduct Enquiries Regulations are incorporated into this Code.

9.7 Rules of evidence and related matters

- (1) (a) For the purposes of the enforcement of this Code through an enquiry, the rules of evidence in this regulation and in the Improper Conduct Enquiries Regulations will apply. (b) The rules of evidence contained in the Improper Conduct Enquiries Regulations are incorporated into this Code.
- (2) For the purposes of imposing upon any person who is a security service provider or an employer of in-house security officers, liability for improper conduct in terms of this Code, any act is deemed to have been performed by such security service provider or employer of in-house security officers if-
 - (a) it is performed by or on the instruction or with the permission, express or implied, given by a person who-
 - (i) performs executive or managing functions in respect of the security service provider or employer of in-house security officers;
 - (ii) is a director, member, partner, trustee, administrator or person in control, as the case may be, of the security service provider or employer of in-house security officers;

- (iii) is an employee of the security service provider or employer of in-house security officers; and
- (b) the person contemplated in paragraph (a) acts -
 - (i) in the exercise of his or her powers;
 - (ii) in the performance of his or her functions or duties;
 - (iii) within the scope of his or her employment; or
 - (iv) in furthering or endeavoring to further the interests of the security service provider or employer of in-house security officers.
- (3) A security service provider and an employer of in-house security officers may be found guilty of improper conduct at an enquiry if the presiding officer is of the opinion that on the basis of all the evidence tendered at the enquiry, the prosecutor has proved the charge of improper conduct on a balance of probabilities.
- (4) If, at an enquiry, an element of the improper conduct in question consists of a finding or decision by a court of law or by any other tribunal or an official of the State, a certificate purporting to have been signed by the director recording such finding or decision and the source on which the information in the certificate is based, will be *prima facie* evidence of such a finding or decision.
- (5) The provisions of sub-regulation (4) do not exclude any other evidence that may be adduced by the prosecutor in terms of law to prove a charge of improper conduct or any element of improper conduct and do not derogate from the power of a presiding officer to make a finding regarding any element of improper conduct on any such evidence.
- (6) (a) The provisions of the Computer Evidence Act, 1983 (Act No. 57 of 1983) are applicable, with the necessary changes, to an enquiry.
- (b) For the purposes of the application of the Computer Evidence Act, 1983 in terms of paragraph (a), PSIRA is deemed to be a “public institution” as contemplated in the said act.
- (7) If in any enquiry it is an element of the improper conduct that a person referred to in the charge sheet rendered a security service or was used or made available to render a security service and the prosecutor shows that the respondent is a security business and employed the person in question at the relevant time, it will be accepted that the said person rendered the security service or was used or made available to render the security service as alleged in the charge sheet, unless there is evidence to the contrary which raises a reasonable doubt.

- (8) If in any enquiry the prosecutor produces a document provided to PSIRA by the respondent, an official or employee of the respondent, a person apparently in the employ of the respondent, or by a person apparently assisting the respondent in his or her business or activities, or if the document was found by an inspector at premises apparently used by the respondent in connection with the rendering of a security service or the administration or management of the rendering of a security service or security officers, the document will be proof of the information contained therein to the extent that the prosecutor expressly relies on the truthfulness or accuracy of such information, unless there is evidence to the contrary which raises a reasonable doubt.
- (9) If in any enquiry the prosecutor produces evidence of an oral statement made to an inspector by the respondent, an official of the respondent, a person apparently in the employ of the respondent, or by a person apparently assisting the respondent in his or her business or activities, the oral statement will be proof of the information contained in such oral statement to the extent that the prosecutor expressly relies on the truthfulness or accuracy of such information, unless there is evidence to the contrary which raises a reasonable doubt.
- (10) Evidence submitted at an enquiry which has been obtained in an unlawful manner, is admissible at an enquiry unless the admission thereof would render the enquiry materially unfair or would be prejudicial to the public interest.
- (11) No provision or penalty contained in this Code, with the exception of criminal proceedings in respect of an offence contemplated in regulation 28, may be construed as indemnifying any person against a prosecution, conviction or imposition of a penalty in respect of any offence in a court of law.
- (12) No criminal proceedings or any other legal proceedings of whatever nature, whether such proceedings are anticipated, pending or concluded will indemnify a security service provider or an employer of in-house security officers against an enquiry, a conviction of improper conduct or the imposition of a penalty in respect of improper conduct in terms of the procedures contemplated in regulation 29.

10. Appeal against decisions

Section 30 (1) Any person aggrieved by:

- (a) the refusal by PSIRA to grant his or her application for registration as a security service provider;
- (b) the suspension or withdrawal of his or her registration as a security service provider by PSIRA; or
- (c) a finding against him or her, of improper conduct in terms of this Act, or the punishment imposed in consequence of the finding, may within a period of 60 days after service of the notification of the relevant decision contemplated in paragraph (a), (b) or (c), appeal to an appeal committee.

Section 30 (2) An appeal committee contemplated in subsection (1) is appointed by the Minister for every appeal and consists of:

- (a) a person with not less than five years' experience as an attorney, advocate or magistrate, who is the presiding officer; and may also include
- (b) two other persons if it is considered appropriate by the Minister.

Section 30 (3) Every person serving as a member of an appeal committee must be independent from PSIRA and may have no personal interest in the private security industry or in the affairs of an appellant.

Section 30 (4) The procedure in connection with the lodging and prosecution of an appeal in terms of this section must be prescribed.

Section 30 (5) The amounts payable by an appellant to PSIRA in respect of the reproduction of records and related matters in the lodging and prosecution of an appeal must be prescribed.

Section 30 (6) The appeal committee hearing an appeal in terms of this section may confirm, set aside or vary the decision or substitute for such decision any other decision which in the opinion of the appeal committee ought to have been taken and direct PSIRA to do everything necessary to give effect to the decision of the appeal committee.

Section 30 (7) A member of the appeal committee may be paid such remuneration and allowance as the Minister may, from time to time, determine with the concurrence of the Minister of Finance.

[illegible]

WORDS/ACRONYMS	EXPLANATION OF ACRONYMS
ASSESSMENT	"A structured process of gathering evidence and making judgments about an individual's performance in relation to registered national standards and qualifications"
ASSESSMENT CRITERIA	It describe the evidence that is needed to show that the learner has demonstrated the outcome correctly. A list of evidence to be supplied by the candidate as proof of his / her ability to integrate all of the competencies listed earlier in the standard.
COMPETENCE	Competence is the ability to do certain things in a range of different environments with knowledge and understanding about what is being done and the effect this has on others. It includes <u>Knowledge, skills, attitudes, values and ethics.</u>
CREDIT	Each unit standard is worth a number of credits which gives an indication of the size and scope of the unit standard, the standard is worth. (1 credit = 10 notional hours of learning)
CRITICAL CROSSFIELD OUTCOMES	critical cross field outcomes is to direct educational activities towards development of the learners within a social and economic environment.
EMBEDDED KNOWLEDGE	Body of theory essential for understanding and applying the standard. Principles, methods and techniques that would underpin good practice of this unit standard.
EVIDENCE	Evidence is a set of information or observations that provides proof of the learner's competence.
FORMATIVE ASSESSMENT	Aims to assist the learner to identify any knowledge/skills gaps when demonstrating his/her current competence. Diagnostic assessment supports learning and progress of the learner.
INTEGRATED ASSESSMENT	Integrated assessment refers to: • assessing a number of outcomes together • assessing a number of assessment criteria together • assessing a number of unit standards together • using a combination of assessment methods and instruments for an outcome/s • collecting naturally occurring evidence in the workplace • Acquiring evidence from other sources such as supervisor's reports, testimonials, portfolio of work previously done, logbooks, journals etc.
LEARNING ASSUMED TO BE IN PLACE	Building blocks (knowledge, skill and understanding) assumed to be in place
LEARNING PROGRAM	A "learning program is a set of learning activities in which the learner will be involved in working towards the achievement of one or more outcomes.
LEVEL	Each unit standard is registered on the NQF at a particular level based on the complexity of the outcomes and stringency of the standards.
NQF	National Qualifications Framework
RANGE STATEMENTS	The range statements indicate detailed requirements of the assessment criteria.

RE-ASSESSMENT	• The same method and instrument may be used, but, the task and materials should be different • The task and materials should, however, be of the same complexity and level as the previous ones. • In case the methods and instruments are changed it must be ensured that they are appropriate for the outcomes specified.
RPL ASSESSMENT	RPL is a way of recognizing what individuals already know and can do. The basic premise underlying it is that people, especially mature adults, learn many things inside and outside the formal structures of education and training and that irrespective of where, how and when learning was acquired, subject to assessment, it can be worthy of recognition and credit.
RPL	Recognition of prior learning
SASSETA	Safety & security sector education and training authority.
SAQA	SOUTH AFRICAN QUALIFICATION AUTHORITY
SPECIFIC OUTCOMES	An outcome is a statement that describes the required competency that must be demonstrated by the learner on successful completion of a training intervention. Key performance areas in the standard are given, the focus is <i>not</i> only on current competence, but also on future competence in this standard.
SUMMATIVE ASSESSMENT	Assessment used to record the level of competence achieved by a learner over a period of time, e.g. at the end of a program, term or year.
QUALIFICATIONS	Represent a planned combination of learning outcomes which has a defined purpose and intended to provide learners with applied competence and a basis for further learning
UNIT STANDARDS	the “building blocks” of qualifications. All qualifications are plotted on the National Qualifications Framework (NQF). “A statement of the outcomes that the learner must achieve to earn credit. Standards are nationally agreed and internationally comparable.”

The PSIRA ACT, ACT 56 OF 2001

PSIRA REGULATIONS

**UNIT STANDARD 246694 EXPLAIN THE REQUIREMENTS FOR
BECOMING A SECURITY SERVICE PROVIDER.**



Explain the requirements for becoming a security service provider

SAQA US ID		UNIT STANDARD TITLE	
246694		Explain the requirements for becoming a security service provider	
ORIGINATOR		REGISTERING PROVIDER	
SGB Security			
FIELD		SUBFIELD	
Field 08 - Law, Military Science and Security		Safety in Society	
ABET BAND	UNIT STANDARD TYPE	NQF LEVEL	CREDITS
Undefined	Regular	Level 3	4
REGISTRATION STATUS	REGISTRATION START DATE	REGISTRATION END DATE	SAQA DECISION NUMBER
Registered	2007-11-28	2010-11-28	SAQA 0474/07
LAST DATE FOR ENROLMENT		LAST DATE FOR ACHIEVEMENT	
2011-11-28		2014-11-28	

This unit standard does not replace any other unit standard and is not replaced by any other unit standard.

PURPOSE OF THE UNIT STANDARD

This unit standard will lead learners towards achieving knowledge, skills and attributes that would enable them to apply the provisions of the legislation that regulates the registration of security providers.

A person credited with this unit standard will be able to:

- Explain the role of Private Security Regulating Authority (PSIRA) in terms of regulating the security industry.
- Explain the compulsory registration provisions for a security service provider.
- Explain the requirements that must be complied with as a security service provider.
- Explain the obligations and requirements that must be met in terms of the code of conduct for security service providers.

LEARNING ASSUMED TO BE IN PLACE AND RECOGNITION OF PRIOR LEARNING

It is assumed that learners are already competent in:

- Communication at NQF Level 2.

UNIT STANDARD RANGE

- Security service providers refer to both security business and security officers.
- The Act refers to the legislation that enables the Private Security Regulating Authority (PSIRA).
- Regulations include but are not limited to the private security industry regulations 2002, made in terms of the legislation that enables the PSIRA.

Specific Outcomes and Assessment Criteria:

SPECIFIC OUTCOME 1

Explain the role of PSIRA in terms of regulating the security industry.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

The primary objective of PSIRA is explained in relation to the security service provider's working environment.

ASSESSMENT CRITERION 2

The functions of PSIRA is explained in terms of the PSIRA legal framework.

ASSESSMENT CRITERION 3

The powers of PSIRA inspectors are identified in terms of the current legislation.

SPECIFIC OUTCOME 2

Explain the compulsory registration provisions for security service provider.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

The obligations and exemptions for registration as a security service provider is explained in terms of the Act.

ASSESSMENT CRITERION 2

The process to be followed when applying for registration as a security service provider is explained in terms of the Act.

ASSESSMENT CRITERION 3

The requirements for registration of a security service provider is explained in terms of the Act.

ASSESSMENT CRITERION RANGE

Requirements includes but are not limited to requirements for registration, training, clearance certificates and infrastructure and capacity.

ASSESSMENT CRITERION 4

The conditions under which a registration as a security service provider will be suspended, withdrawn or lapsed is explained in terms of the Act and related regulations.

SPECIFIC OUTCOME 3

Explain the requirements that must be complied with as a security service provider.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

Notification of change of information is listed in terms of the regulations.

ASSESSMENT CRITERION 2

Records and documents that must be kept are listed in terms of the regulations.

ASSESSMENT CRITERION 3

The requirements in respect of compulsory items, uniform and equipment that must accompany the security officer while on duty are explained in terms of the Act and related regulations.

ASSESSMENT CRITERION RANGE

Items include but are not limited to:

- PSIRA Certificate of identification in terms of regulations, Appointment certificate in terms of the Criminal Procedure Act of 1977.

SPECIFIC OUTCOME 4

Explain the obligations and requirements that must be met in terms of the code of conduct for security service providers.

OUTCOME RANGE

Unless otherwise indicated, regulations under this outcome refer to the code of conduct regulations for security service providers in terms of the Act.

ASSESSMENT CRITERIA

ASSESSMENT CRITERION 1

The purpose of the code of conduct for security service providers is explained in terms of the regulation.

ASSESSMENT CRITERION 2

The obligatory requirements that must be met by security service providers in terms of the regulations are explained.

ASSESSMENT CRITERION RANGE

Obligatory requirements refer to general obligations and obligations specific to a particular category and class of security service provider and different types of security service.

ASSESSMENT CRITERION 3

The penalties that can be imposed when contravening the code of conduct for security service providers are listed in terms of the regulations.

ASSESSMENT CRITERION 4

The conditions under which an appeal may be lodged against a decision of the PSIRA are listed in terms of the Act.

UNIT STANDARD ACCREDITATION AND MODERATION OPTIONS

- An individual wishing to be assessed (including through RPL) against this unit standard may apply to an assessment agency, assessor or provider institution accredited by the relevant ETQA.
- Anyone assessing a learner against this unit standard must be registered as an assessor with the relevant ETQA.
- Any institution offering learning that will enable achievement of this unit standard or assessing this unit standard must be accredited as a provider with the relevant ETQA.
- Moderation of assessment will be conducted by the relevant ETQA at its discretion.

UNIT STANDARD ESSENTIAL EMBEDDED KNOWLEDGE

Refer to the specific outcomes and the assessment criteria contained in this unit standard and specifically to:

- The constitution of the RSA.
- PSIRA Act 56 of 2001.
- Criminal Procedure Act 51 OF 1977.

UNIT STANDARD DEVELOPMENTAL OUTCOME

N/A

UNIT STANDARD LINKAGES

N/A

Critical Cross-field Outcomes (CCFO):**UNIT STANDARD CCFO IDENTIFYING**

Identify and solve problems related to the evaluation of own performance for future improvement.

QUALIFICATIONS UTILISING THIS UNIT STANDARD:

	ID	QUALIFICATION TITLE	LEVEL	STATUS	END DATE
Core	58577	National Certificate: General Security Practices	Level 3	Registered	2010-11-28